WISCONSIN ADMINISTRATIVE CODE

Division of Early Care and Education

DCF 251

LICENSING RULES FOR GROUP CHILD CARE CENTERS AND CHILD CARE PROGRAMS ESTABLISHED OR CONTRACTED FOR BY SCHOOL BOARDS

effective April 1, 2020

TABLE OF CONTENTS

DCF 251.01 AUTHORITY AND PURPOSE 1
DCF 251.02 APPLICABILITY 1
(1) Included and excluded care arrangements 1
(2) Exception to a requirement 1
DCF 251.03 DEFINITIONS 2
DCF 251.04 OPERATIONAL REQUIREMENTS 5
(1) Terms of a license 5
(2) Administration 5
(3) Reports 6
(4) Parents 7
(6) Children's records 8
(7) Confidentiality 9
(8) Reporting child abuse or neglect 10
DCF 251.05 STAFF. 11
(1) DEFINITION. 11
(2) STAFF RECORDS. 11
(3) QUALIFICATIONS OF STAFF. 11
(4) STAFF DEVELOPMENT. 17
DCF 251.055 SUPERVISION AND GROUPING OF CHILDREN. 19
(1) Supervision. 19
(2) Grouping of children. 19
DCF 251.06 PHYSICAL PLANT AND EQUIPMENT. 21
(1) Building. 21
(2) Protective measures. 21
(3) Emergency plans and drills. 22
(4) Fire protection. 22
(6) Water. 23
(7) Indoor space. 23
(9) Kitchens. 23
(10) Washroom and toilet facilities. 25
(11) Outdoor play space. 26
(12) Swimming areas 27
DCF 251.07 PROGRAM. 28
(1) Program planning and scheduling 28
(2) Child guidance. 28
(3) Equipment and furnishings. 29
(4) Rest periods. 30
(5) Meals, snacks, and food service. 30
(6) Health 31
(7) Pets and animals. 34
(8) Miscellaneous activities. 34
DCF 251.08 TRANSPORTATION. 35
(1) Applicability. 35
(2) Permission and emergency information. 35
(3) Required information for each trip. 35
(4) Driver. 35
(5) Vehicle. 36
(6) Seat belts and child safety restraints. 36
(7) Vehicle capacity and supervision. 37
(8) Child care vehicle safety alarm. 37
DCF 251.09 ADDITIONAL REQUIREMENTS FOR INFANT AND TODDLER CARE. 38
(1) Applicability and general requirements. 38
(3) Feeding. 39
(4) Diapering and toileting. 39

DCF 251.095 EXCEPTIONS AND ADDITIONAL REQUIREMENTS FOR CARE OF SCHOOL-AGE CHILDREN. 41
(1) Applicability 41
(2) Exceptions for group child care centers serving only school-age children. 41
(3) Exceptions for group child care centers serving only school-age children in school buildings. 41
(4) Additional requirements for group child care centers serving school-age children. 41
DCF 251.10 ADDITIONAL REQUIREMENTS FOR NIGHT CARE. 43
(1) Applicability 43
(2) General requirements. 43
(3) Program. 43
(4) Preventive measures. 43
(5) Feeding. 43
(6) Sleep. 43
DCF 251.11 LICENSING ADMINISTRATION. 44
(1) General conditions for approval of license. 44
(2) Initial application for a probationary license. 44
(3) Obtaining a regular license. 45
(4) Continuing a regular license. 45
(5) Amending a license. 46
(6) Additional license 46
(7) License denial or revocation. 46
(8) Effect of notice to deny or revoke a license. 47
(9) Summary suspension of a license. 47
DCF 251.12 COMPLAINTS, INSPECTIONS AND ENFORCEMENT ACTIONS. 49
(1) Complaints. 49
(2) Inspection. 49
(3) Enforcement action. 49
DCF 251.13 PROGRAMS ESTABLISHED OR CONTRACTED FOR BY SCHOOL BOARDS. 50
APPENDIX A 51
REGIONAL OFFICES OF THE DIVISION OF EARLY CARE AND EDUCATION 51

DCF 251.01 Authority and purpose. This chapter is promulgated under the authority of s. 48.67, Stats., to establish licensing requirements under s. 48.65, Stats., for group child care centers for children. The purpose of this chapter is to protect the health, safety and welfare of children being cared for in group child care centers.

DCF 251.02 Applicability.

(1) INCLUDED AND EXCLUDED CARE ARRANGEMENTS. This chapter applies to all group child care centers, whether the facility in which the child care and supervision are provided is known as a day care center, nursery school or preschool, head start or school-age child care program, or by any other designation, but it does not apply to the following:

(a) Care and supervision of children in a program, including religious education classes, which operates no more than 4 hours a week.

(b) Group lessons to develop a talent or skill, such as dance or music lessons, social group meetings and activities and group athletic activities.

(c) Care and supervision while the child's parent is on the premises and is engaged in shopping, recreation or other non-work activities.

(d) Care and supervision provided at the site to the child of a recipient of temporary assistance to needy families or Wisconsin works who is involved in orientation, enrollment or initial assessment prior to the development of an employability plan or the child care is provided where parents are provided training or counseling.

(e) Seasonal programs of 10 days or less duration in any 3-month period, including day camps, vacation bible schools and holiday child care programs.

(f) Care and supervision in emergency situations.

(g) Care and supervision while the child's parent is employed on the premises if the child receives care and supervision for no more than 3 hours a day.

Note: Section 48.65, Stats., exempts parents, guardians and certain other relatives; public and parochial (private) schools; persons who come to the home of the child's parent to provide care for less than 24 hours per day; and counties, cities, towns, school districts and libraries that provide programs for children primarily intended for social or recreational purposes from the requirement of a license.

(2) EXCEPTION TO A REQUIREMENT. The department may grant an exception to a requirement of this chapter when it is demonstrated to the satisfaction of the department that granting the exception will not jeopardize the health, safety or welfare of any child served by the center. A request for an exception shall be in writing, shall be sent to the department and shall include justification for the requested action and a description of any alternative provision planned to meet the intent of the requirement.

Note: A request for an exception to a requirement of this chapter should be sent to the licensing representative at the appropriate field office of the Department's Division of Early Care and Education. See Appendix A for addresses of the regional offices.

DCF 251.03 Definitions. In this chapter:

(1) "Administrator" means the person responsible to the licensee for management of the group child care center.

(2) "Assistant child care teacher" means a child care worker who works under the supervision of a child care teacher and who meets the qualifications under s. DCF 251.05 (3) (g).

(2m) "Background check request form" means a form prescribed by the department on which a person completes required information for the child care background check under s. 48.686, Stats., and ch. DCF 13.

Note: Form DCF-F-5296, *Background Check Request*, is available on the department's website, https://dcf.wisconsin.gov/cclicensing/ccformspubs.

(3) "Care" means providing for the safety and the developmental needs of a child in a group child care center.

(4) "Center director" means the person who is responsible to the licensee for the supervision of the center's program for children and for the supervision of the center's staff and who meets the qualifications under s. DCF 251.05 (3) (e).

(4g) "Center-provided transportation" means transportation provided in a vehicle owned, leased or contracted for by the center or in volunteer or staff-owned vehicles regardless of whether the driver is reimbursed for the use of the vehicle.

(4m) "Center-provided vehicle" means a vehicle owned or leased by the center or a vehicle owned by the licensee or an employee that is used to transport children, but does not include a vehicle owned and driven by a parent or volunteer.

(4r)"Child care background check" means the requirements in s. 48.686, Stats., and ch. DCF 13.

(5) "Child care teacher" means a child care worker who plans, implements, and supervises the daily activities for a designated group of children and who meets the qualifications under s. DCF 251.05 (3) (f).

(6) "Child care worker" means a child care teacher or assistant child care teacher in a group child care center.

(8) "Complaint" means an allegation that a provision of this chapter or of ch. 48, Stats., has been violated.

(8m) "Course for credit" means a course that is worth at least 2 credits from an institution of higher education.

(8r) "Crib" means a bed for an infant or young child that is enclosed on 4 sides including play pens and portable cribs.

(9) "Department" means the Wisconsin department of children and families.

(10) "Division" means the department's division of early care and education.

(10g) "Early childhood education" means the teaching of children who are 8 years of age or less.

(10m) "Emergency" means unforeseen circumstances that require immediate attention.

(11) "Field trip" means any experience a child has away from the premises of the center, while under the care of center staff, whether a child walks or is transported.

(11g) "Fit and qualified" means displaying the capacity to successfully nurture and care for children and may include consideration of any of the following:

(a) Abuse of alcohol or drugs.

(b) A history of a civil or criminal conviction or administrative rule violation that is substantially related to the care of children, as determined under s. DCF 13.05.

(c) Exercise of unsound judgment.

(d) A history of civil or criminal offenses or any other action that demonstrate an inability to manage financial resources or the activities of a center.

(11r) "Full day center" means a center that accepts children for care for 5 or more consecutive hours in a day.

(12) "Group" means a specific number of children who have a regularly assigned child care worker and who are cared for in the same self-contained room or area at the center.

(13) "Group child care center" or "center" means a facility where a person for less than 24 hours a day provides care and supervision for 9 or more children who are not related to the provider.

(13m) "Hazard" means a potential source of harm that can jeopardize the health, safety or well-being of children in care.

(14) "HealthCheck provider" means a provider of health assessment and evaluation services eligible to be certified under s. DHS 105.37 (1) (a).

(14g) "In care" means enrolled in the center, with the center providing supervision, either on or off the premises, including during center-provided transportation, for the safety and the developmental needs of the child or children.

(14r) "Inclement weather" means stormy or severe weather such as any of the following:
(a) Heavy rain.
(b) Temperatures above 90 degrees Fahrenheit.
(c) Wind chills of 0 degrees Fahrenheit or below for children age 2 and above.
(d) Wind chills of 20 degrees Fahrenheit or below for children under age 2.

(15) "Infant" means a child under one year of age.

(16) "Institution of higher education" means an educational institution which meets all of the following criteria except, in the case of a business school or technical institution, par. (c):
(a) Admits as regular students only persons having a certificate of graduation from a school providing secondary education, or the recognized equivalent of such a certificate;
(b) Is legally authorized to provide a program of education beyond secondary education;
(c) Provides an education program for which it awards a bachelor's degree or provides not less than a 2-year program which is acceptable for full credit toward that degree; and
(d) Is accredited by a nationally recognized accrediting agency or association or, if not accredited, is an institution whose credits are accepted, on transfer, by not less than 3 institutions which are accredited, for credit on the same basis as if transferred from an institution that is accredited.

(16m) "Licensed hours" means the authorized hours specified on the license certificate and letter of transmittal within which the center may provide child care services.

(17) "Licensee" means the corporation, individual, partnership, limited liability company, or non-incorporated association or cooperative that has legal and financial responsibility for the operation of a child care center and for meeting the requirements of this chapter.

(18) "Licensing representative" means a department employee responsible for licensing group child care centers.

(19) "Night care" means any care that is offered by a licensed group child care center between 10:00 p.m. and 5:00 a.m.

(20) "Parent" means either "parent" as defined in s. 48.02 (13), Stats., or "guardian" as defined in s. 48.02 (8), Stats.

(21) "Parent cooperative" means a center organized by parents for their preschool children in which the parents have decision-making authority to establish and change policy, program and personnel practices.

(22) "Parochial or private school" means an educational program which meets all the criteria specified under s. 118.165 (1), Stats., or as determined by the superintendent of public instruction under s. 118.167, Stats.

(22g) "Part day center" means a center where a defined group of children attend for a specified period of time that is less than 5 consecutive hours in length.

(22r) "Physical Restraint" means the use of physical force to restrict the free movement of all or part of a child's body.

(23) "Physician" has the meaning prescribed in s. 448.01 (5), Stats.

(24) "Physician assistant" has the meaning prescribed in s. 448.01 (6), Stats.

(25) "Premises" means the tract of land on which a center is located, including all buildings and structures on that land.

(26) "Regularly assigned child care worker" means a child care worker who is assigned to a specific group of children in a self-contained room or area.

(26m) "Representative of the department" means a department employee or a representative from an agency the department contracts with to provide pre-licensing services.

(27) "School-age child" means a child 5 years of age or older who is enrolled in a public school or a parochial or other private school.

(28) "Self-contained room or area" means a room separated by permanent walls or an area separated by permanent or portable partitions or dividers acting as a visual barrier for children which is reserved for a group of children and contains the indoor equipment and furnishings required for that group.

(28m) "Shaken baby syndrome" or "SBS" means a severe form of brain injury that occurs when an infant or young child is shaken or thrown forcibly enough to cause the brain to rebound against his or her skull.

(29) "Sleeping bag" means a padded fabric bag that is closed or capable of being closed on three sides.

(29g) "Substitute" means a person who replaces a regularly scheduled person and meets the requirements under s. DCF 251.05 (3) (i).

(29m) "Sudden infant death syndrome" or "SIDS" means the sudden death of an infant under one year of age that remains unexplained after a thorough case investigation, including performance of a complete autopsy, examination of the death scene and a review of the clinical history.

(30) "Supervision of children" means guidance of the behavior and activities of children for their health, safety and well-being by child care workers who are within sight and sound of the children.

(31) "Supervision of staff" means guidance of the behavior and activities of center employees which may include provision of instructions to carry out activities for limited periods of time out of sight or hearing of the supervisor.

(32) "Toddler" means a child at least one year of age but less than 2 years of age.

(33) "Universal precautions" means measures taken to prevent transmission of infection from contact with blood or other potentially infectious material, as recommended by the U.S. public health services centers for disease control and adopted by the U.S. occupational safety and health administration (OSHA) as 29 CFR 1910.1030.

Note: "Standard precautions" for infection control measures incorporate universal precautions. Information on the OSHA requirements related to standard or universal precautions is available on the OSHA web site at http://www.osha.gov. Information is also available from the Child Care Information Center, 1-800-362-7353.

(34) "Volunteer" means a person who is not paid, but agrees to give time, with or without reimbursement for expenses, to transport children attending a group child care center or to work in a group child care center.

(35) "Wading pool" means a shallow pool, with sides 15 inches or less in height, capable of being dumped to change water and used primarily for small children.

DCF 251.04 Operational requirements.

(1) TERMS OF A LICENSE**.**

(a) The number of children at a group child care center at any one time may not exceed the number for which the center is licensed.

(b) The age of children served by a center may not be younger or older than the age range specified in the license.

(c) The hours, days and months of a center's operation may not exceed those specified in the license.

(2) ADMINISTRATION**.** A group child care center licensee shall do all of the following:

(a) Comply with all laws governing the facility and its operation.

Note: Under the state public accommodation law s. 106.52 (3), Stats., federal law related to use of federal funding, and some local anti-discrimination ordinances, denying admission on the basis of race, disability, religion, or certain other characteristics may be illegal.

(b) Comply with all requirements of this chapter.

(bm) Comply with all conditions placed on the license.

(c) Ensure that all information provided to the department is current and accurate.

(d) If residing in another state, designate in writing, as part of the application under s. DCF 251.11 (2) and (3), a Wisconsin resident who is responsible on behalf of the licensee for ensuring compliance with all requirements of this chapter.

(e) Meet, upon request of the department, with a licensing representative on matters pertaining to the license.

(f) Prior to receiving or continuing a license, complete all application forms and pay all fees and forfeitures due to the department.

(g) Submit to the department a certificate of insurance that meets the following conditions:

1. The certificate of insurance shall have coverage dates for all of the following types of insurance:

a. General liability insurance with limits of not less than $25,000 for each person and not less than $75,000 for each occurrence.

b. Vehicle liability insurance with minimums not less than the amounts specified under s. 121.53, Stats., if transportation is provided by the center.

c. Vehicle liability insurance for non-owned vehicles with minimums not less than the amounts specified under s. 121.53, Stats., if transportation is provided in vehicles that are not owned by the center and are not public transportation vehicles or chartered vehicles.

2. The certificate of insurance shall indicate that pets are included in the liability coverage if cats or dogs are permitted in areas of the center accessible to children during the hours of operation.

(h) Develop, submit to the department, and implement written policies consistent with the requirements of this chapter on all of the following subjects:

1. Fee payments and refunds.

2. Personnel, including job descriptions, hours of work, lunch and break times, holidays, vacations, sick leaves, leaves of absence, probationary periods, performance evaluations, grievance procedures and the disciplinary process. The personnel policy shall contain a procedure that requires staff to notify the licensee and the licensee to notify the department as soon as possible but no later than the next business day when any of the following occurs:

a. The employee has been convicted of a crime.

b. The employee has been or is being investigated by any governmental agency for any other act, offense, or omission, including an investigation related to the abuse or neglect or threat of abuse or neglect, to a child or other client, or an investigation related to misappropriation of a client's property.

c. The employee has a substantiated governmental finding against them for abuse or neglect of a child or adult or for misappropriation of a client's property.

d. When a professional license held by an employee has been denied, revoked, restricted or otherwise limited.

3. Discharge of enrolled children.

4. Admission.

5. Health care. If the center is licensed to care for children under one year of age, the policies shall include procedures to reduce the risk of sudden infant death syndrome.

6. Education.

7. Nutrition, including accommodating children with food allergies.

8. Child guidance, including appropriate ways to manage crying, fussing, or distraught children.

9. Emergency plans to be followed in the event of a fire, tornado, missing child, or other emergency.

10. Continuing education for staff.

11. Orientation of new staff and volunteers.

12. Transportation, if the center will transport children either on field trips or on a regular schedule. The policy shall include a procedure to ensure that no child is left unattended in a vehicle.

(j) Ensure that all published statements such as brochures and publicity releases are accurate.

(k) Post the child care license near the entrance or in some other conspicuous area of the center that is visible to the public.

(L)1. Post next to the child care license all of the following:

a. The current licensing statement of compliance or a noncompliance statement and correction plan, including any rule violations the department has not verified as corrected and in compliance.

b. Any notice from the department regarding rule violations, such as a warning letter or enforcement action.

c. Any stipulations, conditions, temporary closures, exceptions, or exemptions that affect the license.

2. All items posted as required under this paragraph shall be visible to parents.

(m) Ensure that any action, by commission or omission, or any condition or occurrence relating to the operation or maintenance of the child care center does not adversely affect the health, safety or welfare of any child under the care of the licensee.

(n) Submit to the department by the department's next business day a completed background check request form if any of the following occurs:

1. A change in the board president or chairperson.

2. A corporation or limited liability company designates a new person to be subject to the background check.

3. A household member turns 18 years of age, unless the household member has previously submitted a background check request form.

4. A household member turns age 10 years of age.

(o) Submit to the department a completed background check request form for each potential household member prior to the date on which the person becomes a household member, unless the person is less than 10 years of age.

Note: The *Background Check Request* form is available electronically through the Child Care Provider Portal or at https://dcf.wisconsin.gov/forms. A paper version is available from any regional licensing office listed in Appendix A.

(p) Submit a current delegation of administrative authority signed by the licensee that outlines the organizational structure and designates, in a chain of command form, those persons on the premises in charge of the center for all hours of operation.

(3) REPORTS. The licensee shall report to the department all of the following. If the report is made by telephone, the licensee shall submit a written report to the appropriate regional licensing office within 5 business days of the incident. Fax, e-mail, and letter are acceptable ways of filing a written report:

(a) Any incident or accident that occurs while the child is in the care of the center that results in professional medical evaluation within 24 hours of the licensee becoming aware of the medical evaluation.

Note: The licensee may use either the department's form, *Incident Report — Child Care Centers*, or the licensee's own form to report incidents or accidents. The form is available on the department's website, https://dcf.wisconsin.gov/cclicensing/ccformspubs.

(am) Any death of a child in care, within 24 hours after the death.

Note: The licensee may use either the department's form, *Incident Report - Child Care Centers*, or the licensee's own form to report the death of a child in care. The department's form is available at https://dcf.wisconsin.gov/cclicensing/ccformspubs.

(ar) Any injury caused by an animal to a child in care, within 24 hours after the incident.

(b) Any damage to the premises that may affect compliance with this chapter, or any incident at the premises that results in the loss of utility services, within 24 hours after the occurrence.

(c) A change in the administrator or center director of a child care center, within 30 days after the change.

(d) A change of any program service, at least 5 days prior to the change.

(e) Statistical data required by the department on forms provided by the department.

(f) If requested by the department, a plan of correction for cited violations of this chapter or ch. 48, Stats., in a format specified by the department. The department shall receive the plan of correction by the date the department specifies and be approved by the department licensing representative.

Note: The licensing representative will notify the licensee if a plan of correction is required and provide the plan of correction format with the notification.

(g) Any known convictions, pending charges or other offenses of the licensee, child care center employees or other person subject to a caregiver background check which could potentially relate to the care of children at the center or activities of the center by the department's next business day.

(h) Any change in room usage, such as changing the way rooms are primarily used by children or using rooms not previously approved for use at least 20 working days prior to the change. Changes in room usage shall be approved by the department prior to the change.

(i) Any incident related to a child who leaves the premises of the center without the knowledge of the provider or any incident that results in a provider not knowing the whereabouts of a child in attendance at the center within 24 hours of the occurrence.

(j) Any suspected abuse or neglect of a child by an employee or volunteer that was reported under s. DCF 251.04 (8), including any incident that results in a child being forcefully shaken or thrown against a surface, hard or soft, during the child's hours of attendance, within 24 hours after the occurrence.

(jm) Any prohibited actions specified in s. DCF 251.07 (2) (e) by an employee or volunteer to a child in care, within 24 hours after the incident.

(k) Any incident involving law enforcement within 24 hours after the occurrence that:

1. Involves a licensee, a household resident or an employee of the center in an incident that causes, or threatens to cause, physical or serious emotional harm to an individual, including a child in the care of the center.

2. Involves any traffic-related incident where a person responsible for the violation transports children in the care of the center.

(L) Any construction or remodeling on the premises that has the potential to affect an area accessible to children or a condition of the license. Notification shall be provided in writing before the construction or remodeling begins.

Note: See s. DCF 251.11 (5) (a) for items that affect a condition of the license.

Note: Alterations, additions, or changes of use to commercial buildings may require submittal of plans to and approval by the Department of Safety and Professional Services or its agent before commencing construction. It is recommended that an architect or engineer be consulted prior to the beginning of any construction or remodeling to determine whether plans must be submitted.

(m) Any confirmed case of a communicable disease reportable under ch. DHS 145 in a child enrolled at the center or a person in contact with children at the center, within 24 hours after the center is notified of the diagnosis. The licensee shall also notify the local health department within 24 hours after the center is notified of the diagnosis.

(n) Any change in meal preparation arrangements, at least 5 calendar days before the change. Centers adding meal preparation after an initial license has been issued shall document compliance with building codes related to kitchens before beginning to prepare meals on the premises.

(o) Any change in transportation services, at least 5 calendar days prior to the change.

(4) PARENTS.

(a) The center administrator shall notify the parents of an enrolled child of all of the following:

1. The child has been exposed to a confirmed case of a communicable disease reportable under ch. DHS 145 and transmitted through normal contact. Notification shall occur when the information becomes known to the center.

2. Notification shall be made immediately in all of the following situations:

a. The child becomes ill.

b. The child needs professional evaluation of an injury.

c. The child experiences a head injury, has a seizure, consumes incorrect breastmilk, consumes food or drink that may contain the child's allergen, consumes or comes in contact with poisonous materials, or is given incorrect medication. For purposes of this subd. 2. C., a "head injury" means a bump, blow, or jolt to the head.

3. The child has sustained a minor injury that does not appear to require professional medical evaluation. Notification may be made when the child is picked up at the center or delivered to the parent or other authorized person.

4. The child will be going on a field trip that is not part of the regularly scheduled program. Notification of the date, time, and destination shall be prior to the field trip.

(b) The center shall permit parents to visit and observe at any time during the center's hours of operation, unless access is prohibited or restricted by court order.

(c) The center shall make opportunities available at least twice each year for parent and staff communication regarding the child's adjustment to the program, and the child's growth and development.

Note: When a child care worker or a parent has concerns about a child's growth or development, a referral to a Birth-to-Three agency or the local public school should be considered to determine if the child is eligible for special services. Wisconsin has an information and referral service for persons with questions or concerns about a child's development called Well Badger Resource Center that is available to the public 24 hours a day, 7 days a week. When a call is placed to Well Badger Resource Center at 1-800-642-7837, the caller will learn about early intervention services as well as other related services in the area.

(d) The center shall notify parents of any religious training that is part of the center's program. The reference to the religious component shall be included in any publicity and in the education policy.

(e) The center shall provide a summary of this chapter to the parents of each child upon the child's enrollment.

Note: Copies of a summary of this chapter may be obtained from the Child Care Information Center, www.ccic.wi.gov, 1-800-362-7353.

(f) A copy of this chapter shall be posted or available in an area of the center where parents are likely to see it.

(g) A copy of the child care policies of the center shall be made available to the parents in an area of the center accessible to parents. Personnel policies need not be included.

(6) CHILDREN'S RECORDS.

(a) The licensee shall maintain a current written record obtained prior to the child's first day of attendance or subsequent re-enrollment at the center on each child enrolled and shall make the record available to the licensing representative on request. Each record shall include all of the following:

1. Enrollment information consisting of:

a. The name and birthdate of the child.

b. The full names of the child's parents.

c. The child's home address and telephone number.

d. An address and telephone number where a parent can be reached while the child is in care.

e. The name, address, telephone number and relationship to the child of a person to be notified in an emergency when a parent cannot be reached immediately.

f. The name, address and telephone number of a physician or medical facility caring for the child.

g. The names, addresses and telephone numbers of persons other than a parent authorized to call for the child or to accept the child who is dropped off.

h. The child's first day of attendance at the center.

2. Written consent from the parent for emergency medical care or treatment.

Note: The licensee may use either the department's form, Child Care Enrollment, or the licensee's own form to obtain consent of the child's parent for emergency medical treatment. Information on how to obtain the department's form is available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

4. Authorization from the parent for the child to participate in field trips and other off-premises activities, if these are part of the center's program.

Note: The licensee may use either the department's form, *Field Trip or Other Activity Notification / Permission*, the department's form, *Child Care Enrollment*, or the licensee's own form for securing parental permission. Forms are available on the department's website, https://dcf.wisconsin.gov/cclicensing/ccformspubs.

5. Authorization from the parent outlining the plan for a child to come to the center from school, home or other activities or to go from the center to school, home or other activities unless the child is accompanied by a parent or other authorized person or transported by the center.

Note: The licensee may use either the department's form, Alternate Arrival/Release Agreement — Child Care Centers, or the licensee's own form for securing the parent's authorization. Information on how to obtain the department's form is available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

6. Documentation of each child's health history on a form provided by the department.

Note: The department's form, Health History and Emergency Care Plan is used for health history information. Information on how to obtain the form is available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

6m. Documentation that indicates the child's immunization history is in compliance with s. 252.04, Stats., and ch. DHS 144.

Note: To record immunization information, use either an electronic printout from the Wisconsin Immunization Registry or other registry maintained by a health care provider or the Department of Health Services Form F-44192, *Child Care Immunization Record.* The form is available on the department's website at https://dcf.wisconsin.gov/cclicensing/ccformspubs.

7. Specific informed written consent from the parent for each incident of participation by a child in any research or testing project.

Note: The licensee may use either the department's form, Informed Consent for Observation or Testing by an Outside Agency — Child Care Centers, or the licensee's own form for securing the parent's written consent. Information on how to obtain the department's form is available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

8. Documentation of each child's most recent physical examination in accordance with the following schedule:

a. Each child under 2 years of age shall have an initial health examination not more than 6 months prior to nor more than 3 months after being admitted to the center, and a follow-up examination at least once every 6 months thereafter.

b. Each child who is at least 2 years of age but who is not 5 years of age or older shall have an initial health examination not more than one year prior to nor later than 3 months after being admitted to a center, and a follow-up health examination at least once every 2 years thereafter.

c. Children 5 years of age and older are not required to have a health exam.

d. A health examination report shall be made on an electronic printout from a licensed physician, physician assistant, or other HealthCheck provider or on a form provided by the department that is signed and dated by a licensed physician, physician assistant, or other HealthCheck provider.

Note: To document a health examination, use either an electronic printout from a medical professional or the department's Form DCF-F-CFS0060, *Child Health Report — Child Care Centers*. The department's form is available at https://dcf.wisconsin.gov/cclicensing/ccformspubs.

(b) The licensee shall maintain a current, accurate written record of the daily attendance and date of birth of each child for the length of time the child is enrolled in the program. The actual time of arrival and departure for each child shall be recorded if hours of arrival and departure vary among children.

Note: The form, Daily Attendance Record — Child Care, may be used to record a child's daily attendance. Information on how to obtain the department's form is available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

(c) If children are transported by the center to or from the child's home or school, the licensee shall maintain a daily attendance record that includes the actual time the child was picked up or dropped off.

(7) CONFIDENTIALITY. The licensee is responsible for the compliance of child care center employees and volunteers with s. 48.78, Stats., and this subsection. The licensee shall ensure that:

(a) Persons having access to children's records do not discuss or disclose personal information regarding the children and facts learned about the children and their relatives. This does not apply to:

1. The parent or a person authorized in writing by the parent to receive the information.

2. Any agency assisting in planning for the child when informed written parental consent has been given.

3. Agencies authorized under s. 48.78, Stats.

(b) A parent, upon request, has access to all records and reports maintained on his or her child.

(c) All records required by the department under this chapter for licensing purposes are available to the licensing representative.

(8) REPORTING CHILD ABUSE OR NEGLECT.

(a) A licensee, employee or volunteer at a child care center who knows or has reasonable cause to suspect that a child has been abused or neglected as defined in ss. 48.02 (1) and 48.981 (1), Stats., shall immediately contact the county department of social services or human services or a local law enforcement agency, as required by s. 48.981, Stats.

(Note): Child care workers are required to report known or suspected child abuse or neglect as specified in par. (a). Reporting to the licensee does not lessen this legal duty if the licensee fails to report as specified in par. (a). Information related to child abuse or neglect may be obtained from the Child Care Information Center, https://dcf.wisconsin.gov/ccic, 1-800-362-7353.

(b) The licensee, shall ensure that every employee and volunteer who comes in contact with the children at the child care center has received training every 2 years in all of the following:

1. Child abuse and neglect law.

2. How to identify children who have been abused or neglected.

3. The procedure for ensuring that known or suspected cases of child abuse or neglect are immediately reported to the proper authorities.

Note: See s. DCF 251.04 (3) (j) on reporting suspected abuse of a child by a staff member to the department.

DCF 251.05 Staff.

(1) DEFINITION. In this section, "The Registry" means a professional development recognition agency.
Note: For further information, see https://www.the-registry.org/TheRegistry/AboutUs.aspx.

(2) STAFF RECORDS.

(a) The licensee shall maintain a file on each employee. The file shall be available for examination by the licensing representative at the center and shall include all of the following:

1. The employee's name, address, date of birth, education, position, previous work experience in child care, including the reason for leaving previous positions, and the name, address, and telephone numbers of persons to be notified in an emergency.

Note: The licensee may use the department's form, *Staff Record - Child Care Centers*, or the licensee's own form for recording staff information. The form is available at https://dcf.wisconsin.gov/cclicensing/ccformspubs.

2. Documentation of a completed child care background check that indicates the person is eligible to work in a child care program as specified in s. 48.686, Stats., and ch. DCF 13.

Note: Information on child care background checks is available at https://dcf.wisconsin.gov/ccbgcheck.

3. a. A physical examination report on a form provided by the department that was completed not more than 12 months prior to nor more than 30 days after the person was hired. The report shall be signed and dated by a licensed physician, physician's assistant, or other HealthCheck provider. The report shall indicate that the person is free from illnesses detrimental to children, including tuberculosis, and that the person is physically able to work with young children.

b. The health examination requirement in subd. 3. a. does not apply to a provider who requests an exemption based on the provider's adherence to religious belief in exclusive use of prayer or spiritual means for healing in accordance with a bona fide religious sect or denomination.

Note: The department's form, *Staff Health Report - Child Care Centers*, is used for recording physical examination information. Forms are available on the department's website, https://dcf.wisconsin.gov/cclicensing/ccformspubs.

4. a. A certificate from The Registry documenting that the person has met the educational qualifications for the position under sub. (3) if the person has worked as a teacher, director, or administrator at the center for at least 6 months. A copy of an educator's license issued by the department of public instruction as a teacher may substitute for a certificate from The Registry.

b. For administrators, center directors, and teachers in school-age only programs that have been in the position for 6 months or more, a certificate from The Registry.

c. For persons required to have a certificate from The Registry under subd. 4. a. and b., an updated certificate from The Registry within one year following the effective date of a significant revision of this chapter, as determined by the department.

d. For persons not required to have a certificate from The Registry, including assistant teachers, and a teacher, center director, or administrator who has not worked for the center for more than 6 months, documentation of the person's educational qualifications.

Note: Information about how to obtain a certificate may be obtained from The Registry's website, http://www.the-registry.org or by calling 608-222-1123.

5. Documentation of a high school diploma or its equivalent as determined by the Wisconsin department of public instruction.

6. Documentation of days and hours worked, and in which classroom, when the person was included in the staff-to-child ratio shall be maintained by the center.

7. Documentation of compliance with continuing education requirements under sub. (4) (c).

(b) A licensee shall maintain a file on each student teacher and each adult who works at the center and is compensated for their work from a source other than the center. The file shall contain the information specified in par. (a) 1., 2., and 3.

(3) QUALIFICATIONS OF STAFF.

(a) *Competency.* A child care worker, center administrator, center director, and volunteers counted in staff-to-child ratio shall be physically, mentally, and emotionally able to provide responsible care for all children, including children with disabilities.

(b) *Training on preventing shaken baby syndrome.* Each child care worker, center administrator, center director, volunteer counted in staff-to-child ratio, or substitute who provides care and supervision to children under 5 years of age shall document completion of department−approved training in shaken baby syndrome and abusive head trauma, and appropriate ways to manage crying, fussing, or distraught children prior to beginning to work with children under 5 years of age.

Note: Department−approved training in the prevention of shaken baby syndrome is included in the department−approved non−credit courses called *Introduction to the Child Care Profession* and *Fundamentals of Infant and Toddler* or the credit-based course called *Health, Safety and Nutrition* offered by a Wisconsin technical college, if the course was taken after 7/1/05.

(c) *Cardiopulmonary resuscitation training.* All employees in regular contact with children shall obtain, maintain and place in the employee's file a current certificate of completion for infant and child cardiopulmonary resuscitation and automated external defibrillator use from an agency approved by the department within 3 months after beginning to work with children in care. Volunteers included in determining staff−to−child ratios shall obtain a certificate of completion in infant and child cardiopulmonary resuscitation after volunteering for 240 cumulative hours. The time spent obtaining or renewing cardiopulmonary resuscitation training may be counted towards the required continuing education hours.

(d) *Administrator.*

1. The licensee may act as administrator of a group child care center. If the licensee does not act as administrator, the licensee shall designate a person or persons to be the administrator or administrators of the center. The administrator shall be responsible for the center's management, including personnel, finance, physical plant, and the day-to-day operation of the center.

2. An administrator, including a licensee that is an administrator, shall meet all of the following conditions:

a. Be at least 21 years of age.

b. Have completed high school or its equivalent, as determined by the Wisconsin department of public instruction.

3. Before a person assumes the position of administrator, the person shall have all of the following:

a. One year of experience as a manager or satisfactory completion of a department−approved course in business or program administration. The course may be either a non-credit course or a course for credit.

b. One year of experience as a center director, as a child care teacher in a group child care center or kindergarten, or as a licensee of a family child care center under ch. DCF 250; or satisfactory completion of a non−credit department−approved course or of a course for credit in early childhood education or its equivalent.

4. If the board of a parent cooperative is responsible for management of a center, the requirements under subds. 2. and 3. do not apply.

5. Within one year of assuming the position, each administrator shall complete at least 10 hours of training in supervision or personnel management, if the administrator has not previously received that training. The training may be counted as part of the annual continuing education requirement.

(e) *Center director.*

1. a. A licensee with the applicable qualifications in this paragraph may act as the center director.

b. If the licensee does not act as center director, the licensee shall designate a person or persons to be the center director.

c. No person may act as the center director for more than 2 full-day or 4 part-day centers.

2. The center director shall be responsible for the supervision of the planning and implementation of the center's program for children, the supervision of staff at the center, staff meetings and orientation, and continuing education for staff.

3. A center director for a program licensed to serve 50 or fewer children shall meet all of the following conditions:

a. Be at least 21 years of age.

b. Have completed high school or its equivalent as determined by the Wisconsin department of public instruction.

c. Have at least 320 hours of experience as a teacher or assistant teacher in a group child care center or other approved setting or have at least 320 hours of experience as a licensee of a family child care center under ch. DCF 250.

d. Have completed at least one of the preservice training requirements in Table 251.05A prior to beginning work as a center director, except as specified in subd. 5. a. The center director shall also complete any additional training requirements in Table 251.05A as provided.

Note: Additional qualifications for school-age only directors are in s. DCF 251.095.

TABLE 251.05A
Director of a center licensed to care for 50 or fewer children

Preservice training	**Additional training**
Two courses for credit in early childhood education.	Within one year of assuming the position, one course in the Wisconsin Child Care Administrator Credential or its equivalent
The Wisconsin Program Development Credential	Within one year of assuming the position, one course in the Wisconsin Child Care Administrator Credential or its equivalent
The Wisconsin Preschool Credential	Within one year of assuming the position, one course in the Wisconsin Child Care Administrator Credential or its equivalent
The Wisconsin Infant–Toddler Credential	Within one year of assuming the position, one course in the Wisconsin Child Care Administrator Credential
Two non-credit department-approved courses in early childhood education.	Within one year of assuming the position, one course in the Wisconsin Child Care Administrator Credential or its equivalent
One course for credit and one non-credit department-approved course in early childhood education.	Within one year of assuming the position, one course in the Wisconsin Child Care Administrator Credential or its equivalent
Forty-eight credits from an institution of higher education with at least 3 credits in early childhood education	Within one year of assuming the position, one course in the Wisconsin Child Care Administrator Credential or its equivalent
A Child Development Associate (CDA) credential issued by the Council for Professional Recognition	Within one year of assuming the position, one course in the Wisconsin Child Care Administrator Credential or its equivalent
A certificate from The Registry indicating the person is preliminarily qualified as a director for a center licensed to care for 50 or fewer children	Within one year of assuming the position, one course in the Wisconsin Child Care Administrator Credential or its equivalent
A one-year diploma in child care or early childhood education from an institution of higher education	No additional training required
An associate degree in early childhood education or child care from an institution of higher education	No additional training required
A bachelor's degree from an institution of higher education in early childhood education, education, or child development	No additional training required
A license issued by the Wisconsin department of public instruction indicating that the person is qualified to act as a pre-kindergarten, kindergarten, or early childhood regular or special education teacher. The license may not be a one-year license with stipulations (formerly known as an emergency license); a 3-year, short-term substitute license; or a 5-year long-term substitute license, as defined by the Wisconsin department of public instruction.	No additional training required

4. A center director for a program licensed to serve 51 or more children shall meet all of the following conditions:

a. Be at least 21 years of age.

b. Have completed high school or its equivalent, as determined by the Wisconsin department of public instruction.

c. Have at least 2 years of experience as a child care teacher or center director in a group child care center or other approved setting.

d. Have completed one of the preservice training requirements in Table 251.05B prior to beginning work as a center director, except as specified in subd. 5. b. The center director shall also complete any additional training requirements in Table 251.05B as provided.

TABLE 251.05B
Director of a center licensed to care for 51 or more children

Preservice Training	**Additional Training**
Four courses for credit in early childhood education from an institution of higher education. Up to 2 courses in the Wisconsin Child Care Administrator Credential series may be used to meet the early childhood education requirement if taken prior to beginning to work as a center director.	Within 3 years of assuming the position the Wisconsin Child Care Administrator Credential
The Wisconsin Program Development Credential	Within 3 years of assuming the position, the Wisconsin Child Care Administrator Credential
The Wisconsin Preschool Credential	Within 3 years of assuming the position, the Wisconsin Child Care Administrator Credential
The Wisconsin Infant – Toddler Credential	Within 3 years of assuming the position, the Wisconsin Child Care Administrator Credential
A combination of 4 courses for credit and non-credit department-approved courses in early childhood education. Up to 2 courses in the Wisconsin Child Care Administrator Credential series may be used to meet the early childhood education requirement if taken prior to beginning to work as a center director.	Within 3 years of assuming the position the Wisconsin Child Care Administrator Credential
A certificate from The Registry indicating that the person is preliminarily qualified as a director for a center licensed to care for 51 or more children	Within 3 years of assuming the position, the Wisconsin Child Care Administrator Credential
An associate degree in early childhood education or child care from an institution of higher education.	No additional training required
A bachelor's degree in early childhood education, education, or child development from an institution of higher education	No additional training required
A license issued by the Wisconsin department of public instruction or the appropriate authority in another state to be a pre-kindergarten, kindergarten, or early childhood regular or special education teacher. The license may not be a one-year license with stipulations (formerly known as an emergency license); a 3-year, short-term substitute license; or a 5-year long-term substitute license, as defined by the Wisconsin department of public instruction.	No additional training required

5. a. Notwithstanding subd. 3. d., a person is not required to complete preservice training under Table 251.05A if the person was employed as the director of a center licensed to serve 50 or fewer children prior to September 30, 2019, and met the preservice training requirement with a certificate from The Registry indicating the person was on Registry Level 12 or above.

b. Notwithstanding subd. 4. d., a person is not required to complete preservice training specified in Table 251.05B if the person was employed as the director of a center licensed to serve 51 or more children prior to September 30, 2019, and met the preservice training requirement with a certificate from The Registry indicating the person was on Registry Level 14 or above.

(f) *Child care teacher.*

1. A child care teacher shall plan, implement, and supervise the daily activities for a group of children.

2. A person who is a child care teacher shall meet all of the following conditions:

a. Be at least 18 years of age.

b. Have completed high school or its equivalent, as determined by the Wisconsin department of public instruction.

c. Have at least 320 hours of experience as an assistant child care teacher in a group child care center or other approved early childhood setting.

3. Prior to assuming the position, a person hired to be a child care teacher shall complete or obtain one of the following:

a. Two courses for credit in early childhood education or its equivalent from an institution of higher education.

b. Two non-credit department-approved courses in early childhood education.

Note The non−credit courses approved by the department to meet the entry level training requirements for a child care teacher are *Introduction to the Child Care Profession* and *Skills and Strategies for the Child Care Teacher* or the assistant child care teacher or child care teacher training programs approved by the Wisconsin department of public instruction.

bm. One course for credit in early childhood education and one non-credit department-approved course in early childhood education.

c. Certificate from The Registry indicating that the person is qualified as a child care teacher.

d. A Wisconsin Preschool Credential.

e. A Wisconsin Infant-Toddler Credential.

f. Forty-eight credits from an institution of higher education with at least 3 credits in early childhood education or its equivalent.

g. A one-year child care diploma in child care or early childhood education from an institution of higher education.

h. An associate degree in early childhood education or child care from an institution of higher education.

i. A Child Development Associate credential issued by the Council for Professional Recognition.

j. Certificate from American Montessori Society, Association Montessori International, or Montessori Accreditation Council for Teacher Education.

k. A license issued by the Wisconsin department of public instruction or the appropriate authority in another state to be a pre-kindergarten, kindergarten, or early childhood regular or special education teacher. The license may not be a one-year license with stipulations (formerly known as an emergency license); a 3-year, short-term substitute license; or a 5-year long-term substitute license, as defined by the Wisconsin department of public instruction.

Note: Information on how to obtain or renew a Wisconsin department of public instruction teacher license is available on the DPI website, http://dpi.wi.gov/tepdl.

L. A certificate from the department of workforce development, bureau of apprenticeship standards, as a child development specialist.

(g) *Assistant child care teacher.*

1. An assistant child care teacher shall work under the supervision of a child care teacher with a group of children.

2. Except as provided under subd. 3., a person hired to be assistant child care teacher shall be qualified in one of the following ways:

a. Be at least 18 years old and have satisfactorily completed one course for credit in early childhood education or its equivalent at an institution of higher education within 6 months after assuming the position.

b. Be at least 18 years old and have satisfactorily completed one, non-credit department-approved course in early childhood education within 6 months after assuming the position.

Note: *Introduction to the Child Care Profession* is the non−credit course that is approved by the department to meet the entry level training requirements for a child care assistant teacher. Information on agencies offering the department−approved course is available on the department's website at http://dcf.wisconsin.gov.

c. Have satisfactorily completed an assistant child care teacher training program approved by the Wisconsin department of public instruction.

3. A parent serving as an assistant child care teacher in a center operated by a parent cooperative is exempt from the training requirements under subd. 2.

(h) *Non-credit course criteria.* Non-credit courses offered to meet the non-credit course requirements specified in this subsection shall contain the components prescribed by the department and shall be approved by the department before being offered. The department may at any time withdraw its approval of a non-credit course. Instructors of non-credit department-approved courses shall be approved by the department prior to teaching a course.

Note: Information on the process for obtaining department approval for non-credit courses may be obtained from The Registry at www.the-registry.org or 608-222-1123. A list of agencies approved to offer non-credit department-approved courses is available on the department's website at http://dcf.wisconsin.gov.

(i) *Substitutes.*

1. When a regular required staff member is absent from a center, there shall be a substitute who is at least 18 years of age.

2. A substitute who is employed by the same licensee for more than 240 hours shall have completed at least one course for credit or one non-credit, department-approved course in early childhood education before completing 240 cumulative hours of work as a substitute.

Note: The course for credit called *Health, Safety and Nutrition* offered by a Wisconsin technical college or the department-approved, non-credit course called *Introduction to the Child Care Profession* may be used to meet this requirement and if taken after 7/1/05 also contains the department-approved training in shaken baby syndrome prevention. Information on agencies offering the department-approved course is available on the department's website at http://dcf.wisconsin.gov.

3. The center director or designee shall maintain a record of the days and hours worked by each substitute.

(j) *Volunteers and student teachers*.

1. Volunteers and student teachers shall participate in the orientation required under sub. (4) (a).

2. A volunteer who is used to meet a center's required staff-to-child ratios under s. DCF 251.055 shall complete at least one course for credit or one non-credit, department-approved course in early childhood education before completing 240 cumulative hours of work as a volunteer.

Note: The course for credit called *Health, Safety and Nutrition* offered by a Wisconsin technical college or the department-approved, non-credit course called *Introduction to the Child Care Profession* may be used to meet this requirement and if taken after 7/1/05 also contain the department-approved training in shaken baby syndrome prevention. Information on agencies offering the department-approved course is available on the department's website at http://dcf.wisconsin.gov.

3. A volunteer who is not included in determining the center's required staff-to-child ratios under s. DCF 251.055 shall have training in child care programming and procedures before working with children in care. The training shall include the responsibilities of the volunteer, general child supervision techniques, a review of the daily schedule and general health and safety practices including meal or snack preparation, dishwashing, toileting, personal hygiene and emergency evacuation procedures. This includes volunteers working in a center operated by a parent cooperative.

4. The center director or designee shall coordinate the volunteer program and keep on file documentation of the hours worked by volunteers who are used to meet staff-to-child ratios.

5. A volunteer used to meet the required staff-to-child ratios under s. DCF 251.055 shall be at least 18 years of age.

(k) *Provider health.*

1. No licensee, employee, volunteer, visitor, or other person with symptoms of serious illness that presents a safety or health risk to children or a communicable disease that is reportable under ch. DHS 145 and transmitted through normal contact may be in contact with children in care.

2. No licensee, employee, volunteer, visitor, or other person whose behavior gives reasonable concern for the safety of children may be in contact with the children in care.

3. The department may require a licensee, employee, or other person in contact with the children whose behavior gives reasonable concern for the safety of children to submit to an examination by a licensed mental health professional as a condition of licensure or employment.

Note: See also s. DCF 251.11 (1) (f), which requires a written statement from a physician or licensed mental health professional when there is reason to believe that the physical or mental health of a person may endanger children in care.

4. No person with a health history of typhoid, paratyphoid, dysentery, or other diarrheal disease may work in a center until it is determined by appropriate tests that the person is not a carrier of the disease.

(4) STAFF DEVELOPMENT.

(a) *Orientation.* Except as provided under subd. 14., each center shall develop and implement a written orientation program that all new employees, substitutes, and regular volunteers shall complete and document within their first week at the center. The orientation program shall cover all of the following:

Note: See DCF 251.08 (4) (b) for orientation requirements for persons transporting children.

1. A review of this chapter.

2. A review of center policies and procedures required under s. DCF 251.04 (2) (h).

3. A review of the center emergency plans required under s. DCF 251.04 (2) (h) 9., including fire and tornado evacuation plans and the operation of fire extinguishers.

4. Prevention and response to emergencies due to food and allergic reactions.

5. First aid procedures.

6. Administration of medications.

7. Job responsibilities in relation to the job description.

8. Training in the recognition of childhood illnesses and infectious disease control, including handwashing procedures, universal precautions for handling bodily fluids, and immunizations.

Note: Information on universal precautions may be obtained from the Child Care Information Center website, https://dcf.wisconsin.gov/ccic, or by calling 800−362−7353.

9. A schedule of activities of the center.

10. A review of child abuse and neglect laws and center reporting procedures.

11. The procedure for ensuring that all child care workers know the children assigned to their care and their whereabouts at all times, including during center-provided transportation.

12. Child management techniques.

13. The procedure for sharing information related to a child's special health care needs including any physical, emotional, social, or cognitive disabilities with any child care worker who may be assigned to care for that child throughout the day.

14. If the center is licensed to care for children under one year of age, a review of procedures to reduce the risk of sudden infant death syndrome prior to an employee's or volunteer's first day of work.

15. The procedure to contact a parent if a child is absent from the center without prior notification from the parent.

16. Information on any special needs that a child enrolled in the center may have and the plan for how those needs will be met.

17. Building and physical premises safety, including identification of and protection from hazards, bodies of water, and vehicular traffic.

18. The handling and storage of hazardous materials and the appropriate disposal of biocontaminants. In this subdivision, "biocontaminants" includes blood, body fluids, or excretions that may spread infectious disease.

Note: The licensee may use the department's form, *Staff Orientation Checklist - Group Child Care Centers,* for documenting staff orientation. The form is available on the department's website at https://dcf.wisconsin.gov/cclicensing/ccformspubs.

(b) *Staff meetings.* To ensure that staff have the opportunity to receive pertinent information and clarification of problems and issues, each center shall conduct in-person staff meetings at least 9 times in a calendar year or one time for each month of center operation and shall document that staff meetings have been held.

(c) *Continuing education.* 1. Each administrator, center director, and child care worker who works more than 20 hours a week shall participate in at least 25 hours of continuing education annually.

2. Each administrator, center director, and child care worker who works 20 or fewer hours a week shall participate in at least 15 hours of continuing education annually.

3. Any continuing education hours completed that exceed the annual requirement for the year may be used to meet the annual requirement in the 2 years following completion.

4. Continuing education courses completed for credit that exceed the annual requirement for the year may be used to meet the annual requirement in the 2 years following completion.

5. Assistant child care teachers who are currently enrolled in their first entry level course are not required to earn continuing education for that year.

6. The types of training acceptable to meet continuing education requirements shall be limited to any of the following:

a. Formal courses resulting in credits or continuing education units.

b. Workshops, conferences, seminars, lectures, correspondence courses, and home study courses.

c. Training offered by the child care center through the use of guest or staff trainers.

d. Documented observation time in other early childhood programs.

e. Web-based training that results in a certificate of completion.

7. Continuing education may be in any of the following topics:

a. Prevention and control of infectious diseases.

b. Medication administration.

c. Prevention of and response to emergencies due to food and allergic reactions.

d. Identification of and protection from hazards.

e. Building and physical premises safety.

f. Emergency preparedness and response planning.

g. Handling and storage of hazardous materials.

h. Handling and disposal of biocontaminants.

i. Child growth and development.

j. Caring for children with disabilities.

k. Guiding children’s behavior.

L. Nutrition.

m. Physical activity.

n. Transportation safety.

o. Identification and reporting of suspected child abuse or neglect.

p. Cardiopulmonary resuscitation.

q. First aid.

r. Business operations.

s. Any other topic that promotes child development or protects children’s health or safety.

8. Independent reading, viewing educational materials, internet searches, or web-based training that does not result in a certificate of completion may be counted for up to 5 hours of continuing education per year for each person required under subd. 1. to have 25 hours of continuing education, and up to 2.5 hours of continuing education per year for each person required under subd. 2. to have 15 hours of continuing education.

9. Each administrator, center director, and child care worker shall have documentation of the 12-month period included in his or her training year for meeting continuing education requirements and begin a new training year in the same month each year.

Note: The licensee may use either the department’s form, *Staff Continuing Education Record - Child Care Centers*, or the licensee’s own form to document the completion of continuing education. Forms are available on the department’s website at https://dcf.wisconsin.gov/cclicensing/ccformspubs.

DCF 251.055 Supervision and grouping of children.

(1) SUPERVISION.

(a) Each child shall be supervised by a child care worker who is within the sight and sound of the children to guide the children's behavior and activities, prevent harm, and ensure safety.

(b) At least one child care teacher shall supervise each group of children.

(c) Assistant child care teachers who are at least 18 years of age and have completed the training required for the position may provide sole supervision to a group of children in full-day centers for opening and closing hours, not to exceed the first 2 hours and the last 2 hours of center operation, and during the center's designated naptime, not to exceed 2 hours.

(d) A child care worker may not provide care for children at the center for more than 12 hours in any 24-hour period.

(e) A child may not be in care for more than 14 hours in any 24-hour period.

(f) The center shall implement and adhere to a procedure to ensure that the number, names, and whereabouts of children in care are known to assigned child care workers at all times.

(g) A child may not be released to any person who has not been previously authorized by the parent.

(h) The center shall implement a procedure to contact a parent if a child is absent from the center without prior notification from the parent.

(i) No person under 18 years of age shall be left in sole charge of a child.

(j) No licensee, employee, volunteer, or other individual in contact with children may consume alcoholic beverages or any non-prescribed controlled substance specified in ch. 961, Stats., on the premises of the center or be under the influence of any alcohol or non-prescribed controlled substance, during the hours of the center's operation.

(2) GROUPING OF CHILDREN.

(a) The maximum number of children in a group may not exceed the number specified in Table 251.055.

(b) The ratio of child care workers to children may not be less than the minimum number of child care workers to children specified in Table 251.055.

TABLE DCF 251.055
Maximum Group Size and Minimum Number of Child Care Workers in Group Child Care Centers

Age of Children	Minimum Number of Child Care Workers to Children	Maximum Number of Children in a Group
Birth to 2 Years	1:4	8
2 years to 2½ Years	1:6	12
2½ Years to 3 Years	1:8	16
3 Years to 4 Years	1:10	20
4 Years to 5 Years	1:13	26
5 Years to 6 Years	1:17	34
6 Years and Over	1:18	36

(c) When there is a mixed-age group, the required staff-to-child ratios in Table 251.055 shall be adjusted on a pro rata basis in accordance with the ages of the children in the group.

Note: The licensee may use the department's form, *Child Care Staff-To-Child Ratio Worksheet - Group Child Care Centers*, to adjust the staff-to-child ratio. Forms are available on the department's website at https://dcf.wisconsin.gov/cclicensing/ccformspubs.

(d) When infants and toddlers are part of a mixed-age group, the size of the group may not exceed 8.

(e) When the group of children is a mixed age group of children 2 years and older, the group size shall be determined by the number of children that can be cared for by 2 child care workers with the required staff-to-child ratios in Table 251.055 adjusted on a pro rata basis in accordance with the ages of the children in the group.

(f) Maximum group size does not apply to field trips, outdoor play areas, and areas of the center reserved exclusively for eating. Staff-to-child ratios shall be maintained in those settings.

(g) During naptime, an adjustment in group size and staff-to-child ratios in Table 251.055 may be made as follows:

1. One child care worker shall be within sight or sound of each group of sleeping children.

2. Staff-to-child ratios shall be maintained in the center during naptime.

3. Maximum group size requirements do not apply to napping groups.

4. As children wake, sight and sound supervision and staff-to-child ratios in Table 251.055 shall be maintained for awake children.

(h) When 8 or fewer children are present in a center, there shall be a second adult available to come to the center within 5 minutes for emergencies. The center shall maintain a signed and dated statement from that person, including an address and telephone number, certifying that the person is available and agrees to serve if needed.

(i) In a center with 9 or more children present, there shall be at least 2 adults available in the center at all times. At least one of the adults shall be a child care worker directly involved in the supervision and care of the children.

(j) When 9 or more children are on a field trip there shall be at least 2 child care workers accompanying the children and the staff-to-child ratios in Table DCF 251.055 shall be maintained. At least one of the child care workers shall be a child care teacher.

(k) Support staff, such as clerical, housekeeping, and food service staff, may only be considered in determining whether the required staff-to-child ratios are met at any of the following times:

1. During those hours when they give full attention to the care and supervision of children if they meet the qualifications of a child care worker.

2. During naptime when children are sleeping.

(L) Child care workers shall be free of non-classroom duties when they are counted in meeting the staff-to-child ratios.

(m) Children of staff who attend the center and who are on the premises for supervision and care shall be included in determining group size and staff-to-child ratios.

DCF 251.06 Physical plant and equipment.

(1) BUILDING.

(a) The building in which a center is located shall comply with applicable state and local building codes. The licensee shall maintain a building inspection report that specifies that the building meets the applicable Wisconsin commercial building codes for use as a group child care center.

Note: Inspections can be obtained from a commercial building inspector certified by the Department of Safety and Professional Services in accordance with ch. SPS 305, "Licenses, Certifications, and Registration," or a Wisconsin architect registered in accordance with chapter A-E 3, Architect Registration, or a Wisconsin engineer registered in accordance with chapter A-E 4, Professional Engineer Registration.

Note: Local authorities should be consulted to obtain any required zoning clearances or building permits.

(b) If a group child care center cares for children 30 months of age or less, an applicant or licensee shall obtain a building inspection report that designates areas of the center that are approved for children 30 month of age or less when a center is inspected after September 29, 2019, due to any of the following:

1. Remodeling or modifications at an existing center that requires an inspection under Wisconsin commercial building codes or local ordinances.

2. An inspection done under par. (a) to obtain an initial license.

(c) Space designated for use by children may only be used by children and staff and may not be used for other purposes while the center is open.

(d) The inside temperature may not be less than 67°F.

(e) If the inside temperature exceeds 80°F., the licensee shall provide for air circulation with fans, with air conditioning, or by other means.

(2) PROTECTIVE MEASURES.

(a) The indoor and outdoor premises shall be free of hazards including any recalled products.

Note: Lists of recalled products are available on the Department of Agriculture, Trade and Consumer Protection website at https://datcp.wi.gov/Pages/Programs_Services/ChildProductRecallsAdvice.aspx or by contacting the United States Consumer Products Safety Commission (US CPSC) at 1-800-638-2772.

(b) Steam radiators, fireplaces, wood burning stoves, electric fans, electric outlets, electrical heating units and hot surfaces, such as pipes, shall be protected by screens or guards so that children cannot touch them.

(c) Firearms, ammunition and other potentially dangerous items may not be kept on the premises.

(d) Materials harmful to children, including power tools, flammable or combustible materials, insecticides, matches, drugs, cleaning supplies, bleaches, and other hazardous, toxic, or poisonous articles shall be appropriately labeled and stored in areas inaccessible to children.

(e) A motor vehicle shall be immediately available at the center at all times in case of an emergency if a public or private rescue or emergency vehicle cannot arrive at the center within 10 minutes of a phone call.

(f) The center shall have a working telephone or access to a working telephone on the premises during hours of operation, with a list of emergency telephone numbers, including telephone numbers for the local fire department, police department or other law enforcement agency, poison control center and emergency medical service in a location known to all providers. In this paragraph, "telephone" does not include a pay telephone requiring payment to reach the operator or a telephone in a locked room.

(g) Stairs, walks, ramps and porches shall be maintained in a safe condition and free from the accumulation of water, ice or snow.

(gm) The premises shall be well drained, free from litter, clean, and in good repair. The premises shall be maintained to prevent the entrance or harborage of vermin.

(h) Smoking is prohibited on the premises of the center or in a vehicle used to transport children when the children are in care.

Note: See s. DCF 251.03 (25) for the definition of premises.

(i) There shall be no flaking or deteriorating paint on exterior or interior surfaces in areas accessible to children.

(im) No lead-based paint or other toxic finishing material may be used on indoor or outdoor furnishings and equipment.

(j) Children may not be allowed in an area where power tools are in use.

(k) A hot tub located in a room or area accessible to children shall have a visible, locked, rigid cover or be enclosed by a locked fence at least 4 feet tall. The lock shall be installed so that the lock is inaccessible to children.

(L) If a hot tub is located in a room or area not intended for use by children, access to the room or area shall be controlled through the use of a visibly locked door. The lock shall be installed so that the lock is inaccessible to children.

(m) Cleaning aids such as mops and brooms shall be clean. Buckets used with mops shall be emptied and stored in areas inaccessible to children.

(n) Garbage containers in the building shall be rigid, covered, watertight, and emptied daily or more often as needed. Compactors need not be emptied daily. Garbage and refuse stored out of doors shall be kept in leak-proof containers equipped with tight-fitting covers and shall be disposed of as necessary to prevent decomposition or overflow.

(o) Windows and doors that are used for ventilation shall be screened.

(3) EMERGENCY PLANS AND DRILLS.

(a) Each center shall have a written plan for taking appropriate action in the event of an emergency, including fire, tornado, or flood; extreme heat or cold; loss of building services, including heat, water, electricity, or telephone; human- caused events, such as threats to the building or its occupants; allergic reactions; lost or missing children; vehicle accidents; or other circumstances requiring immediate attention. The plan shall include procedures for all of the following:

1. Evacuation, relocation, shelter-in-place, and lock-down.
2. Ensuring the needs of children under 2 years of age and children with disabilities are met.
3. Communication with parents.
4. Connecting children with their parents if the center is required to evacuate the building.

(b) Each center shall do all of the following:

1. Post the fire evacuation route and tornado shelter areas.
2. Practice the fire evacuation plan monthly, and tornado drills monthly from April through October.
3. Ensure that all staff members know what their duties are if there is an emergency.
4. Keep a written record of dates and times all fire and tornado drills practiced.

Note: The licensee may use the department's form *Safety and Emergency Response Documentation - Group Child Care Centers*, to document the results of the monthly testing of fire alarms and smoke detectors. Forms are available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

(4) FIRE PROTECTION.

(a) Each fire extinguisher on the premises of a center shall be operable at all times, inspected once a year by a qualified person and bear a label indicating its present condition and date of the last inspection.

(b) All staff members shall be instructed in and knowledgeable about the use of the fire extinguishers.

(c) Each floor used by children shall have at least 2 exits.

(d) Exits and exit passageways shall have a minimum clear width of 3 feet and be unobstructed by furniture or other objects.

(e) An extension cord may not be used permanently with an appliance.

(f) No more than 2 electrical appliances may be plugged into any one wall outlet.

(g) The door to the basement and furnace room shall be closed.

(h) Areas under stairs may not be used for storage.

(i) All exit lights shall be lit at all times.

(j) Fire detection and prevention systems, including smoke detectors, heat or flame detectors, pull stations, and sprinkler systems, shall be maintained in good working order. A signaling device, such as a smoke, heat, or flame detector shall be used to conduct monthly fire evacuation drills. The licensee shall either document that the fire detection and prevention systems are monitored by a fire prevention agency or that the detectors and alarms have been tested monthly.

Note: The licensee may use the department's form, *Safety and Emergency Response Documentation — Group Child Care Centers*, to document the results of the monthly testing of fire alarms and smoke detectors. Information on how to obtain the department's form is available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

(k) Unvented gas, oil or kerosene space heaters are prohibited.

(6) WATER.

(a) A safe supply of drinking water shall be available to children at all times from a drinking fountain of the angle jet type or by use of disposable cups. Common use of drinking cups is prohibited.

(b) If the center gets its water from a private well, the following shall apply:

1. Water samples from the well shall be tested for lead and bacteria by a laboratory certified by the department of agriculture, trade and consumer protection as specified in ch. NR 809. The laboratory report shall be available to the department upon request.

Note: Group child care centers with a non-transient, non-community water system are notified by the Department of Natural Resources of the required testing time frames.

2. A center serving children under 6 months of age shall have the water tested annually for nitrate levels.

3. If water test results indicate the water contains high levels of lead or is bacteriologically unsafe, the water shall be appropriately treated and re-tested until it is determined to be safe. Bottled water shall be used until the water is determined to be safe. If the water tests above the maximum allowable level of nitrates, bottled water shall be used for infants under 6 months of age.

Note: Centers using a private well should contact their regional Department of Natural Resources (DNR) office to determine whether they need to be in compliance with additional water test requirements. Child care centers that serve at least 25 of the same people over 6 months of the year are considered to have a non-transient non community water system (NTNC) and must be in compliance with Chapter NR 809, Safe Drinking Water Act Standards. Contact the nearest Department of Natural Resources from the list at: https://dnr.wi.gov/Contact/SSbyCounty.html.

(7) INDOOR SPACE.

(a) The space used by children shall be no less than 35 square feet of usable floor space for each child, exclusive of passageways, kitchens, bathrooms, coat storage areas, offices, storage areas, isolation quarters, staff room, furnace room, parts of rooms occupied by stationary equipment, and areas not at all times available to children, including areas used exclusively for large muscle activity, napping or eating.

(b) There shall be additional storage space for cots, bedding, supplies and equipment not in use.

(9) KITCHENS.

(a) *Equipment and utensils.*

1. When meals are prepared or heated on the premises, the kitchen shall be equipped with a microwave or stove with an oven, a refrigerator, a sink and utensils that are necessary to prepare and serve meals. The sink shall be used exclusively for food preparation and dishwashing.

1m. Centers preparing or serving only snacks are not required to have a sink unless dishes or utensils requiring dishwashing are used. Centers preparing or serving only snacks are not required to have a microwave or stove unless the snacks served require heating. Refrigerators are required if the center serves milk or other perishable snacks.

2. All equipment and utensils shall have smooth, hard surfaces, be easily cleanable, in good repair, durable, non-toxic and free of cracks, seams, chips and roughened areas, and shall be maintained in a clean and sanitary condition.

3. Food preparation tables shall be durable, and surfaces shall be smooth, non-absorbent and easily cleanable.

4. After cleaning, utensils shall be stored in a clean, dry place and protected from contamination.

5. Single-service utensils shall be non-toxic, stored in a clean, dry place, kept covered, and may not be reused.

(b) *Dishwashing procedures.*

1. All kitchen utensils and food contact surfaces used for preparation, storage or serving of food shall be thoroughly cleaned and sanitized after each use.

2. All utensils and dishes shall be scraped, sorted and prewashed under running water.

3. For manual washing of dishes and utensils, a 3-step procedure shall be used:

a. Wash in water between 110° and 125°F., using an effective soap or detergent.

b. Rinse by immersing dishes and utensils in clean, hot water to remove soap or detergent.

c. Sanitize by using a product that is registered with the U.S. environmental protection agency as a sanitizer and has instructions for use as a sanitizer on the label. The sanitizer shall be used in a manner consistent with the label instructions.

4. a. If a center uses a commercial dishwasher to clean dishes and utensils, the dishwasher shall have a readily visible temperature gauge located in the wash compartment. If the dishwasher is a spray type or immersion type dishwasher, a temperature gauge shall also be located in the rinse water line.

b. Wash at 130 degrees Fahrenheit to 150 degrees Fahrenheit for at least 20 seconds, using an effective cleaning agent, and rinse and sanitize at 180 degrees Fahrenheit for 10 seconds or more, using an automatic rinse injector.

c. When using a spray-type dishwashing machine, the dishes and utensils shall be washed, rinsed and sanitized in the dishwasher according to the manufacturer's operating instructions. A chemical sanitizer shall be used in the final rinse.

5. If the center uses a home-type dishwasher to clean dishes and utensils, the dishes and utensils shall be washed and rinsed in the dishwasher and by using a product that is registered with the U.S. environmental protection agency as a sanitizer and has instructions for use as a sanitizer on the label. The sanitizer shall be used in a manner consistent with the label instructions.

6. All dishes and utensils shall be air-dried in racks or baskets or on drain boards.

(c) *Food sources.*

1. Food shall be clean, wholesome, free from spoilage, free from adulteration or misbranding and safe for human consumption. Meat, poultry, fish, molluscan shellfish, eggs and dairy products shall be from an inspected source.

2. Only milk and milk products which are pasteurized and meet the Grade A milk standards of the Wisconsin department of agriculture, trade, and consumer protection may be served or used.

3m. Meals shall be prepared on the premises, in a central kitchen operated by the child care center or in another location that has been inspected by a representative of a state agency.

Note: Chapter ATCP 75, subch. III addresses restaurants and other public eating establishments. Chapter ATCP 75, subch. II, addresses retail food establishments.

4. Food in dented, bulging or leaking cans, or cans without labels, may not be used.

5. Hermetically sealed, non-acid or low-acid food which has been processed in a place other than a commercial food processing establishment may not be used.

(d) *Food storage.*

1. Foods shall be stored at temperatures which protect against spoilage. The following measures shall be taken to prevent spoilage:

a. Perishable and potentially hazardous food which includes all custard-filled and cream-filled pastries, milk and milk products, meat, fish, shellfish, gravy, poultry stuffing and sauces, dressings, salads containing meat, fish, eggs, milk or milk products, and any other food or food product likely to spoil quickly if not kept at the proper temperature shall be continuously maintained at 40°F. or below or 140°F. or above, as appropriate, except during necessary periods of preparation and service.

b. Each refrigeration unit shall be maintained at 40°F. or lower and each freezing unit shall be maintained at 0°F. or lower.

c. Each cold storage facility shall be equipped with a clearly visible accurate thermometer.

d. Food shall be covered while refrigerated, except when being cooled.

2. Foods not requiring refrigeration shall be stored in clean, dry, ventilated and lighted storerooms or areas which shall be protected from contamination by sewage, wastewater backflow, condensation, leakage or vermin. In addition:

a. Dry foods, such as flour, sugar, cereals and beans shall be stored in bags with zip-type closures or metal, glass or food-grade plastic containers with tight-fitting covers and shall be labeled. In this paragraph, "food grade plastic" means any plastic material used in the manufacture of dishes or utensils which has been found not harmful to human health by the national sanitation foundation.

b. Foods stored in the basement shall be stored at least 8 inches above the floor, and food stored in other areas shall be stored high enough above the floor to provide for air circulation and to facilitate cleaning.

(f) *Food handling.*

1. Raw fruits and vegetables shall be washed before being served or cooked.

2. Food returned from individual plates or from dining tables shall be discarded.

3. Food that was prepared but not served shall be dated, refrigerated promptly, and used within 36 hours, or frozen immediately for use within 6 months.

4. Food delivery vehicles shall be equipped with clean containers or cabinets to store food while in transit. Containers for cold food shall be capable of maintaining the temperature at or below 40°F. and containers for hot food shall be capable of maintaining the temperature at or above 140°F.

5. Potentially hazardous frozen foods shall be thawed in the refrigerator, under cold running water or on the defrost setting in a microwave oven. No potentially hazardous frozen food may be thawed by leaving it at room temperature.

(g) *Meal preparation personnel.*

1. Personnel who help prepare meals shall:

a. Be at least 18 years of age.

b. Wear clean clothing and effective hair restraints such as hair nets or caps.

c. Wash their hands with soap and warm running water before starting work, before and after handling food, and after using the toilet. Hands shall be dried with single use towels.

d. Participate in the orientation under s. DCF 251.05 (4) (a) and shall document annual training of at least 4 hours in kitchen sanitation, food handling, and nutrition.

2. No one with an open or infected wound or sore may work in the food preparation area unless the wound or sore is covered and, if it is on a hand, a nonporous glove is worn on that hand.

(10) WASHROOM AND TOILET FACILITIES.

(a) A group child care center shall provide at least the number of washbasins and toilets with plumbing indicated in Table 251.06. Urinals may be substituted for up to 1/3 of the total required toilets.

TABLE 251.06
Minimum Number of Washbasins and Toilets Required in Group Child Care Centers

Maximum Number of Children for Which the Center is Licensed	Number of Toilets	Number of Washbasins
9 or 10	1	1
11 to 25	2	1
26 to 40	3	2
41 to 55	4	2
56 to 70	5	3

(b) When a center is licensed for more than 70 children, one additional toilet shall be provided for each additional 15 children or fraction thereof and washbasins shall be provided in the ratio of one for every 2 additional toilets and urinals or fraction thereof.

(c) Children under the age of 30 months need not be included when determining the required fixtures under par. (a). However, in all cases, at least one toilet and one washbasin shall be provided.

(d) If potty chairs are used for children under 30 months of age, the potty chairs shall be provided in a ratio of one for every 4 children or fraction thereof.

(dm) 1. Toilet rooms and fixtures shall be in a sanitary condition at all times.

2. Potty chair receptacles shall be emptied and rinsed after use and the potty chair and receptacle shall be disinfected immediately using a product registered with the U.S. environmental protection agency as a disinfectant that has instructions for use as a disinfectant on the label. The disinfectant shall be used according to label instructions.

(e) Steps or blocks shall be provided if washbasins and toilets are not proportioned to the size of the children.

(f) Soap, toilet paper, disposable paper towels or blower-type air dryers and a wastepaper container shall be provided and accessible to children using the facilities.

(g) Toilet room door locks shall be openable from the outside and the opening device shall be readily accessible to the staff.

(11) OUTDOOR PLAY SPACE.

(a) *Requirement for outdoor play space.* A center shall have outdoor play space if children are present for more than 3 hours per day or if outdoor play is included in the center program.

(b) *Required features of outdoor play space.* Except when an exemption is requested and is approved by the department under par. (c), a center shall comply with all of the following requirements for outdoor play space:

1. The outdoor play space shall be on the premises of the center.

2. There shall be at least 75 square feet of outdoor play space for each child 2 years of age or older using the space at a given time.

3. There shall be at least 35 square feet of outdoor play space for each child under 2 years of age using the space at a given time except as provided in subd. 4.

4. The total outdoor play space of a center shall accommodate not less than 1/3 of the number of children for which the center is licensed or shall be a minimum of 750 square feet, whichever is greater. The number of children under one year of age need not be included for purposes of computing the minimum required outdoor play space if the center provides spaces in wheeled vehicles such as strollers and wagons equal to the number of children under one year of age.

5. An energy-absorbing surface, such as loose sand, pea gravel, or pine or bark mulch, in a depth of at least 9 inches is required under climbing equipment, swings, and slides whenever the play equipment is 4 feet or more in height and in a fall zone of 4 feet beyond the equipment. Shredded rubber and poured surfacing shall be installed to the manufacturer's specifications based on the height of the equipment.

6. Structures such as playground equipment, railings, decks, and porches accessible to children that have been constructed with CCA treated lumber shall be sealed with an exterior oil based sealant or stain at least every 2 years.

6m. Wood containing creosote or pentachlorophenol (PCP), including railroad ties, may not be accessible to children.

7. The boundaries of the outdoor play space shall be defined by a permanent enclosure not less than 4 feet high to protect the children. Fencing, plants, or landscaping may be used to create a permanent enclosure. The permanent enclosure may not have any open areas that are greater than 4 inches.

8. Concrete and asphalt are prohibited under climbing equipment, swings and slides.

Note: The Consumer Products Safety Commission has a publication entitled Handbook for Public Playground Safety, Pub. No. 325 which provides information on playground safety guidelines designed to help child care centers build safe playgrounds. To obtain copies of this publication and a related public playground safety checklist, contact the Consumer Products Safety Commission at www.cpsc.gov or 1-800-638-2772.

(bm) *Equipment*. Outdoor equipment shall be safe and durable. The outdoor equipment shall be all of the following:

1. Used in accordance with all manufacturer's instructions and any manufacturer's recommendations that may affect the safety of children in care.

2. Scaled to the developmental level, size, and ability of the children.

3. Of sturdy construction with no sharp, rough, loose, protruding, pinching, or pointed edges, or areas of entrapment, in good operating condition, and anchored when necessary.

4. Placed to avoid danger of injury or collision and to permit freedom of action.

(c) *Exemption for off-premises play space.*

1. In this paragraph, "main thoroughfare" means a heavily traveled street or road used by vehicles as a principal route of travel.

1m. If a center has no outdoor play space available on the premises of the center, the licensee may request an exemption from the requirements under par. (b) for a center's outdoor play space.

2. A request for an exemption under subd. 1m. shall be in writing and shall be accompanied by a plan for outdoor play space which does all the following:

a. Identifies and describes the location to be used, the travel distance from the center to that location and the means of transporting the children to that location.

b. Provides for adequate supervision of the children as specified in Table 251.055.

c. Provides for daily vigorous exercise in the out-of-doors for the children.

d. Describes the arrangements to meet the toileting and diapering needs of the children.

e. Affirms the center's compliance with the requirements included in subds. 3. to 6.

Note: Send the request for an exemption and the off-premises outdoor play space plan to the appropriate regional office in Appendix A.

3. The off-premises outdoor play space shall be free of hazards such as bodies of water, railroad tracks, unfenced in-ground swimming pools, heavily wooded areas and nearby highways and main thoroughfares.

4. There shall be at least 75 square feet of outdoor play space for each child 2 years of age or older using the space at a given time, and at least 35 square feet of outdoor play space for each child under 2 years of age using the space at a given time.

5. No climbing equipment, swing or slide in the play space may have concrete or asphalt under it.

6. When the off-premises outdoor play space is reached by walking, the center shall transport children under 3 years of age in wheeled vehicles, such as strollers or wagons, with a seating capacity equal to the number of children under 3 years of age to be transported.

7. A center's plan for use of an off-premises outdoor play space is subject to approval by the department. Within 30 days after receipt of a plan and request for an exemption from the requirements of par. (b), the department shall either approve the plan and grant the exemption or not approve the plan and therefore deny the request for exemption. The department shall notify the center in writing of its decision and, if it does not grant an exemption, shall state its reasons for not granting the exemption.

8. If any circumstance described in an approved plan for use of off-premises outdoor play space changes or if any condition for plan approval is not met or is no longer met, the department may withdraw its approval of the plan and cancel the exemption. A center with an approved plan shall immediately report to the department's licensing representative any significant change in any circumstance described in the plan.

(12) SWIMMING AREAS.

(a) Above-ground and in-ground swimming pools on the premises may not be used by children in care. Swimming pools shall be enclosed by a 6-foot fence with a self-closing, self-latching door. Spaces between the vertical posts of the fence shall be 4 inches or less. A beach on the premises may not be used by children in care and access to a beach shall be restricted by a 6-foot fence.

(b) A wading pool on the premises may be used if the water is changed and the pool is disinfected daily. Supervision and staff-to-child ratio requirements under s. DCF 251.055 (1) and (2) shall be met.

(c) A wading pool, pool, water attraction or beach that is not located on the center premises may be used by children, if all the following conditions are met:

1. The construction and operation of the pool shall meet the requirements of chs. SPS 390 and ATCP 76 for public swimming pools. A beach shall comply with any applicable local ordinance.

2. Certified lifesaving personnel shall be on duty.

3. While children are in the water of a pool, wading pool, water attraction or beach, staff-to-child ratios for child care workers who can swim shall be:

a. For children under 3 years of age: 1:1.

b. For children 3 years of age: 1:4.

c. For children 4 and 5 years of age: 1:6.

d. For children 6 years of age and older: 1:12.

4. When a mixed age group of children are swimming, the staff-to-child ratio shall be adjusted based on the number of children in the water and each child's age.

Note: A worksheet to help calculate the staff to child ratio for mixed aged groupings during swimming is available from the department. Requests may be made to the licensing representative or regional licensing office listed in Appendix A.

5. A child shall be restricted to the area of the pool or beach that is within the child's swimming ability.

6. If some of the children are in the water and others are not, there shall be at least 2 child care workers supervising the children. One child care worker shall supervise the children who are in the water, and the other child care worker shall supervise children who are not in the water.

DCF 251.07 Program.

(1) PROGRAM PLANNING AND SCHEDULING.

(a) Each group child care center shall have a written program of activities which are suitable for the developmental level of each child and each group of children. The program shall provide each child with experiences which will promote all of the following:

Note: The Wisconsin Model Early Learning Standards are voluntary standards that were designed to help centers develop programs and curriculum to help ensure that children are exposed to activities and opportunities that will prepare them for success in school and into the future. The Standards are primarily intended as guidance on developmentally appropriate expectations and are not intended to be used as a checklist to gauge a child's progress. The Standards are based on scientific research. Copies of the Wisconsin Model Early Learning Standards are available on the Wisconsin Early Childhood Collaborating Partners website at http://www.collaboratingpartners.com/ or through the Child Care Information Center at 1-800-362-7353.

1. Self-esteem and positive self-image.
2. Social interaction.
3. Self-expression and communication skills.
4. Creative expression.
5. Large and small muscle development.
6. Intellectual growth.
7. Literacy.

Note: With parental consent and consultation, it is recommended that centers who care for children who have an Individualized Family Service Plan (IFSP) or an Individualized Education Program (IEP) coordinate programming activities with the local school district or Birth to Three agency.

(b) The program schedule shall be planned to provide a flexible balance each day of:

1. Active and quiet activities.
2. Individual and group activities.
3. Indoor and if the center is in operation more than 3 hours per day, outdoor activities.

(c) Television may be used only to supplement the daily plan for children. No child may be required to watch television. Other activities shall be available.

(d) Routines such as toileting and eating and intervals between activities shall be planned to avoid keeping children waiting in lines or assembled in large groups.

(e) The program shall provide all of the following:

1. Reasonable regularity in eating, napping and other routines.
2. Daily periods when a variety of experiences are concurrently available for the children to select their own activities.
3. Protection from excess fatigue and over stimulation.
4. If a center is in operation for more than 3 hours per day, daily outdoor activities except during inclement weather or when not advisable for health reasons.

(f) Child care workers shall give children individual attention.

(g) A center that is open in the early morning and late afternoon shall have a written plan for activities which meet the individual needs of the children during those time periods. The plan shall include:

1. Provision of opportunities for the children to rest and eat.
2. Use of materials and engagement in activities which for the most part do not duplicate materials or activities planned for the major part of the program.

(h) The program as implemented shall reflect the center's written policies.

(2) CHILD GUIDANCE.

(a) In this subsection:

1. "Time-out period" means removing the child from the situation in a non-humiliating manner and placing the child in a designated location in order to interrupt the child's unacceptable behavior.
2. "Redirection" means directing the child's attention to a different program activity.

(b) Each child care center shall develop and implement a written policy that provides for positive guidance, redirection, and the setting of clear-cut limits for the children. The policy shall be designed to help a child develop self-control, self-esteem, and respect for the rights of others.

(c) If a center uses time-out periods to deal with unacceptable behavior, time-out periods may not exceed 3 minutes, and the procedure shall be included in the center's child guidance policy. For purposes of this paragraph, a "time-out" is an interruption of unacceptable behavior by the removal of the child from the situation, not to isolate the child, but to allow the child an opportunity to pause, and with support from the provider, reflect on behavior and gain self-control.

(d) Use of time-out periods is prohibited for children under 3 years of age.

(e) Actions that may be psychologically, emotionally or physically painful, discomforting, dangerous or potentially injurious are prohibited. Examples of prohibited actions include all of the following:

1. Spanking, hitting, pinching, shaking, slapping, twisting, throwing or inflicting any other form of corporal punishment.

2. Verbal abuse, threats or derogatory remarks about the child or the child's family.

3. Physical restraint, binding or tying to restrict movement or enclosing in a confined space such as a closet, locked room, box or similar cubicle.

4. Withholding or forcing meals, snacks or naps.

5. Actions that are cruel, aversive, frightening or humiliating to the child.

(f) A child may not be punished for lapses in toilet training.

Note: Prohibited actions by an employee or volunteer to a child by a staff member must be reported to the department within 24 hours after the occurrence under s. DCF 251.04 (3) (j).

(3) EQUIPMENT AND FURNISHINGS.

(a) Indoor furnishings and equipment shall be safe and durable. The equipment and furnishings shall be:

1. Scaled to the developmental level, size and ability of the children.

2. Of sturdy construction with no sharp, rough, loose, protruding, pinching or pointed edges, or areas of entrapment, in good operating condition, and anchored when necessary.

3. Placed to avoid danger of injury or collision and to permit freedom of action.

4. Placed over an energy-absorbing surface, when equipment is 4 feet or more in height.

5. Used in accordance with all manufacturer's instructions and any manufacturer's recommendations that may affect the safety of children in care.

(b) A center shall provide equipment and supplies according to the following criteria:

1. Child development shall be fostered through selection of a variety of equipment that will:

a. Provide large muscle development.

b. Provide construction activities and for development of manipulative skills.

c. Encourage social interaction.

d. Provide intellectual stimulation.

e. Encourage creative expression.

2. A center shall provide sufficient indoor play equipment to allow each child a choice of at least 3 activities involving equipment when all children are using equipment.

3. A center shall provide sufficient outdoor play equipment to allow each child at least one activity involving equipment when all children are using equipment.

(c) The quantity of indoor and outdoor play equipment specified in par. (b) 2. and 3. shall be provided based on the maximum licensed capacity of the center.

(d) Equipment and materials which reflect an awareness of cultural and ethnic diversity shall be provided.

(e) Shelves shall be provided for equipment and supplies in rooms used by children. Equipment and supplies shall be arranged in an orderly fashion so that children may select, use, and replace items.

(f) Trampolines and inflatable bounce surfaces on the premises shall not be accessible to children and shall not be used by children in care.

(g) Tables and seating shall be scaled to the proper height and size for the children's comfort and reach.

(h) There shall be sufficient storage space for the clothing and personal belongings of each child in attendance. For children 2 years of age and older, the space for outer garment storage shall be at child level.

(i) Furnishings, toys, and other equipment shall be washed or cleaned when they become soiled.

(4) REST PERIODS.

(a) A child under 5 years of age in care for more than 4 hours shall have a nap or rest period.

(b) Child care workers shall permit a child who does not sleep after 30 minutes and a child who awakens to get up and to have quiet time through the use of equipment or activities which will not disturb other children.

(c) Each child under one year of age who naps or sleeps shall be provided with a safe, washable crib or playpen that meets the applicable safety standards in 16 CFR Part 1219 or 1220 and shall be placed at least 2 feet from the nearest sleeping child. Cribs or playpens may be placed end-to-end if a solid partition separates the crib or playpen and an aisle not less than 2 feet in width is maintained between sleeping surfaces.

(cm) Each child one year of age and older who has a nap or rest period shall be provided with a sleeping surface that is clean, safe, washable, and placed at least 2 feet from the nearest sleeping child. Sleeping surfaces may be placed end-to-end if a solid partition separates children and an aisle not less than 2 feet in width is maintained between sleeping surfaces. The sleeping surface shall be any of the following:

1. A bed.
2. A cot.
3. A padded mat.
4. A sleeping bag.
5. A crib or playpen.

(d) Each child one year of age and older not using a sleeping bag shall be provided with an individually identified sheet and blanket that may be used only by that child until it is washed.

(e) Bedding shall be maintained and stored in a clean and sanitary manner, replaced immediately if wet or soiled, and washed after every 5 uses at a minimum. A crib or playpen shall be washed and disinfected between changes in occupancy.

(5) MEALS, SNACKS, AND FOOD SERVICE.

(a) *Food.*

1. Food shall be provided by the center based on the amount of time children are present as specified in Table 251.07.

TABLE 251.07
Meal and Snack Requirements for each Child in a Group Child Care Center

Time a Child is Present	Number of Meals and Snacks
At least 2½ but less than 4 hours	1 snack
At least 4 but less than 8 hours	1 snack and 1 meal
At least 8 but less than 10 hours	2 snacks and 1 meal
At least 10 or more hours	2 meals and 2 or 3 snacks

2. Center-provided transportation time shall be included in determining the amount of time children are present for the purposes of subd. 1.

3. Food shall be served at flexible intervals, but no child may go without nourishment for longer than 3 hours.

4. At a minimum, children shall be provided food for each meal and snack that meets the U.S. department of agriculture child and adult care food program minimum meal requirements for amounts and types of food.

Note: The USDA meal program requirements are found on the website, http://www.fns.usda.gov/cacfp/meals-and-snacks.

4m. Additional portions of vegetables, fruits, bread, and milk shall be available.

5. Menus for meals and snacks provided by the center shall:

a. Be posted in the kitchen and in a conspicuous place accessible to parents.

b. Be planned at least one week in advance, dated and kept on file for 3 months.

c. Be available for review by the department.

5m. A daily menu may not be repeated within a one-week time period.

6. Any changes in a menu as planned shall be recorded on the copies of the menu kept on file and posted for parents.

6m. When snacks are provided by parents for all children, a record of the snack served shall be posted in an area accessible to parents.

8. When food for a child is provided by the child's parent, the center shall provide the parent with information about requirements for food groups and quantities specified by the U.S. department of agriculture child and adult care food program minimum meal requirements.

9. A special diet based on a medical condition, excluding food allergies, but including nutrient concentrates and supplements, may be served only upon written instruction of a child's physician and upon request of the parent.

9m. A special diet based on a food allergy may be served upon the written request of the parent.

10. Cooks, staff members, child care workers and substitutes having direct contact with the children shall be informed about food allergies and other allergies of specific children.

(b) *Food service.*

1. Staff shall sit at the table with the children during mealtime.

2. Meals shall be served with time allowed for socialization.

3. Except as provided in subd. 4., in a center where meals and snacks are served, seating and table space shall be at least equal to the licensed capacity of the center, excluding infants, so that all children can be served at the same time.

4. In a center where meals are served in a central lunchroom, seating and table space shall be at least equal to the number of children to be served in a shift.

5. Eating surfaces, including high chairs, shall be washed and sanitized before and after each use.

(6) HEALTH.

(a) *Observation.* Each child upon arrival at a center shall be observed by a staff person for symptoms of illness and injury. For an apparently ill child, the procedure under par. (c) shall be followed.

(b) *Isolation.* A center shall have an isolation area for the care of children who appear to be ill. If the area is not a separate room, it shall be separated from space used by other children by a partition, screen, or other means to keep other children away from the ill child.

(c) *Ill child procedure.* The following procedures shall apply when a child with an illness or condition that has the potential to affect the health of other persons, such as vomiting, diarrhea, unusual lethargy, or uncontrolled coughing, is observed in the child care center:

1. The child shall be isolated until the child can be removed from the center.

2. The child in the isolation area shall be within sight and sound supervision of a staff member.

3. The child shall be provided with a bed, crib, playpen, cot, or padded mat and a sheet and blanket or a sleeping bag.

4. The child's parent or emergency contact shall be contacted as soon as possible after the illness is discovered and arrangements shall be made for the child to be removed from the center.

(d) *Care of a mildly ill child.* A child who is mildly ill may be cared for at the center when all of the following conditions are met:

1. The space for the care of a mildly ill child shall be a self-contained room and shall be separate from children who are well.

2. The room shall have a sink with hot and cold running water.

3. The parent consents in writing.

4. The written health policy of the center allows a mildly ill child to remain at the center.

5. The center follows and implements procedures in a written plan for the provision of care to mildly ill children approved and signed by a licensed physician, or a pediatric or family nurse practitioner which covers all of the following:

a. Admissions and exclusions.

b. Staffing.

c. Staff training.

d. Monitoring and evaluation.

e. Programming.

f. Infectious disease control.

g. Emergency procedures.

6. Medical consultation is available from a physician or local health department in establishing policy for the management of mildly ill children.

(dm) *Medical log book.*

1. The licensee shall maintain a medical log book that has stitched binding with pages that are lined and numbered.

2. Pages may not be removed from the medical log book under subd. 1. and lines may not be skipped. Each entry in the log book shall be in ink, dated, and signed or initialed by the person making the entry.

3. A child care worker shall record all of the following in the medical log under subd. 1.:

a. Any evidence of unusual bruises, contusions, lacerations, or burns seen on a child, regardless of whether received while in the care of the center.

b. Any injuries received by a child while in the care of the center on the date the injury occurred. The record shall include the child's name, the date and time of the injury, and a brief description of the facts surrounding the injury.

c. Any medication dispensed to a child, on the date the medication is dispensed. The record shall include the name of the child, type of medication given, dosage, time, date, and the initials or signature of the person administering the medication.

d. Any incident or accident that occurs when the child is in the care of the center that results in professional medical evaluation.

Note: See s. DCF 250.04 (8) for requirements related to reporting suspected child abuse or neglect.

4. The director or the director's designee shall review records of injuries with staff every 6 months to ensure that all possible preventive measures are being taken. The reviews shall be documented in the medical log book under subd. 1.

(e) *Communicable disease.*

1. No child or other person with a reportable communicable disease specified in ch. DHS 145 may be admitted to or be permitted to remain in a center during the period when the disease is communicable.

3. An employee, volunteer or a child may be readmitted to the group child care center if there is a statement from a physician that the condition is no longer contagious or if the person has been absent for a period of time equal to the longest usual incubation period for the disease as specified by the department.

Note: The Wisconsin Department of Health Services, Division of Public Health, has developed materials that identify those communicable diseases that are required to be reported to the local public health officer. These materials also provide additional guidance on the symptoms of each disease and information on how long an infected child must be excluded from the center. The materials include a communicable disease chart and exclusion guidelines for child care centers. Copies of the communicable disease chart or the exclusion guidelines for child care centers are available from the Child Care Information Center at 800-362-7353.

(f) *Medications.*

1. Center staff may give prescription or non-prescription medication, such as pain relievers, teething gels or cough syrup, to a child only under the following conditions:

a. A written authorization that includes the child's name and birthdate, name of medication, administration instructions, medication intervals and length of the authorization dated and signed by the parent is on file. Blanket authorizations that exceed the length of time specified on the label are prohibited.

Note: The department's form, Authorization to Administer Medication — Child Care Centers, is used to obtain the parent's authorization to provide medications. Information on how to obtain the department's form is available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

b. The medication is in the original container and labeled with the child's name and the label includes the dosage and directions for administration.

3. Medication shall be stored so that it is not accessible to the children.

4. Medication requiring refrigeration shall be kept in the refrigerator in a separate, covered container clearly labeled "medication".

5. All medication for a child in care shall be administered by the center as directed on the label and as authorized by the parent.

6. No medication intended for use by a child in the care of the center may be kept at the center without a current medication administration authorization from the parent.

(g) *Health precautions.*

1. Bodily secretions, such as runny noses, eye drainage, and coughed-up matter shall be wiped with a disposable tissue used once and placed in a plastic-lined container.

2. Surfaces exposed to bodily secretions including walls, floors, toys, equipment, and furnishings shall be washed with soap and water and disinfected. The disinfectant solution shall be registered with the U.S. environmental protection agency as a disinfectant and have instructions for use as a disinfectant on the label. The solution shall be prepared and applied as indicated on the label.

3. As appropriate, children shall be protected from sunburn and insect bites with protective clothing, sunscreen, or insect repellent. Sunscreen and insect repellent may only be applied upon the written authorization of the parent. The authorization shall include the ingredient strength and be reviewed and updated every 6 months. If sunscreen or insect repellent is provided by the parent, the sunscreen or repellent shall be labeled with the child's name. Recording the application of sunscreen or insect repellent is not necessary.

4. Children shall be clothed to ensure body warmth and comfort. Wet or soiled clothing shall be changed promptly from an available supply of clean clothing.

5. Center staff shall adopt and follow universal precautions when exposed to blood and blood-containing bodily fluids and injury discharges.

6. Single use disposable gloves shall be worn if there is contact with blood-containing bodily fluids or tissue discharges. Gloves shall be discarded in plastic bags.

(i) *Personal cleanliness.*

1. A child's hands shall be washed with soap and warm running water before meals and snacks, after handling a pet or animal, and after toileting or diapering. A child's hands and face shall be washed when soiled. For children under one year of age, hands may be washed with soap and a wet fabric or paper washcloth that is used once and discarded.

2. Persons working with children shall wash their hands with soap and warm running water before handling food, before and after assisting with toileting and diapering, after wiping bodily secretions from a child with a disposable tissue, and after exposure to blood or bodily fluids. If gloves are used, hands shall be washed after the removal of gloves.

3. Personal use items, such as cups, eating utensils, toothbrushes, combs, and towels may not be shared and shall be kept in a sanitary condition.

4. Wet or soiled clothing and diapers shall be changed promptly from an available supply of clean clothing.

5. Applicable rules under s. DCF 251.09 (4) (a), (c), and (d) shall when children 2 years of age and older require attention for diapering and toileting.

6. If running water is not immediately available when outdoors or on field trips, soap and water-based wet wipes may be used. When running water becomes available, hands must be washed immediately with soap and running water.

7. Disinfecting hand sanitizers may not replace the use of soap and water when washing hands.

(j) *Injuries.*

1. Written permission from the parent to call a child's physician or refer the child for medical care in case of injury shall be on file at the center. The center shall contact the parent as soon as possible after an emergency has occurred or, if the injury is minor, when the parent picks up the child.

Note: The center may use the department's form, *Child Care Enrollment*, or its own form for obtaining medical consent from the parent. The form is available on the department's website, https://dcf.wisconsin.gov/cclicensing/ccformspubs.

2. A center shall identify a planned source of emergency medical care, such as a hospital emergency room, clinic or other constantly staffed facility, and shall advise parents about the designated emergency medical facility.

3. A center shall establish and follow written procedures for bringing a child to an emergency medical care facility and for treatment of minor injuries.

4. First aid procedures shall be followed for serious injuries.

5. Each center shall have a supply of bandages, tape, and Band-Aids.

6. Superficial wounds shall be cleaned with soap and water only and protected with a bandaid or bandage.

7. Suspected poisoning shall be treated only after consultation with a poison control center.

Note: See s. DCF 251.04 (6) (c) on maintaining a medical log book.

(7) PETS AND ANIMALS.

(a) Animals shall be maintained in good health and appropriately immunized against rabies. Rabies vaccinations shall be documented with a current certificate from a veterinarian.

Note: Service animals used to assist persons with a disability are not considered pets when they are used as a service animal.

(b) Animals that pose any risk to the children shall be restricted from the indoor and outdoor areas used by children.

(c) Licensees shall ensure that parents are aware of the presence of pets and animals in the center. If pets and animals are allowed to roam in areas of the center occupied by children, written acknowledgement from the parents shall be obtained. If pets are added after a child is enrolled, parents shall be notified in writing prior to the pets' addition to the center.

(d) Reptiles, amphibians, turtles, ferrets, poisonous animals, psittacine birds, exotic and wild animals may not be accessible to children.

Note: Psittacine birds are hooked-billed birds of the parrot family that have 2 toes forward and 2 toes backward and include parrots, macaws, grays, lovebirds and cockatoos.

(e) All contact between pets or animals and children shall be under the close supervision of a child care worker who is close enough to remove the child immediately if the pet or animal shows signs of distress or the child shows signs of treating the pet or animal inappropriately.

(f) Pets in classrooms shall be confined in cages while food is being prepared or served in the classroom. Pets, cages and litter boxes are prohibited in kitchens, lunch rooms, and food storage areas. Pet and animal feeding dishes, excluding water dishes, and litter boxes may not be placed in areas accessible to children.

(g) Indoor and outdoor areas accessible to children shall be free of animal excrement.

(h) If dogs or cats are allowed in areas of the center accessible to children, the certificate of insurance required under s. DCF 251.04 (2) (g) shall indicate the number and types of pets covered by the insurance.

(i) Licensees shall ensure that the center is in compliance with all applicable local ordinances regarding the number, types and health status of pets or animals.

(8) MISCELLANEOUS ACTIVITIES. A center that includes in its program watercraft, riflery, archery, horseback riding, or adventure-based activities shall comply with the applicable requirements under s. DCF 252.44 (8), (9), (11), and (13).

DCF 251.08 Transportation.

(1) APPLICABILITY.

(a) Except as provided in par. (b), this section applies to all transportation of children in care, including both regularly scheduled transportation to and from the center and field trip transportation if any of the following apply:

1. The licensee owns or leases the vehicle used.

2. The licensee contracts with another individual or organization that owns or leases the vehicle used.

3. Employees, parents, or volunteers are transporting children at the direction, at the request, or on behalf of the licensee.

(b) The following requirements do not apply to transportation provided in vehicles owned and driven by parents or volunteers who are not counted in the staff-to-child ratios in s. DCF 251.055 (2) (b):

1. The requirement that a licensee obtain a copy of the driver's driving record and review it under sub. (4) (c).

2. The requirement to provide evidence that the vehicle is in safe operating condition at 12-month intervals under sub. (5) (b).

3. The requirements related to child care vehicle safety alarms under sub. (8).

(c) The licensee shall document in its policies that transportation provided through a written or verbal contract with another individual or organization meets the requirements of this section.

(2) PERMISSION AND EMERGENCY INFORMATION. Before transporting a child, a licensee shall obtain signed permission from the parent for transportation and emergency information for each child. The form shall include all of the following information:

(a) The purpose of the transportation and the parent or guardian's permission to transport the child for that purpose.

(b) An address and telephone number where a parent or other adult can be reached in an emergency.

(c) The name, address, and telephone number of the child's health care provider.

(d) Written consent from the child's parent or guardian for emergency medical treatment.

Note: The licensee may use the department's form, *Child Care Enrollment*, to obtain consent of the child's parent for emergency medical treatment. Information on how to obtain forms is available on the department's website, https://dcf.wisconsin.gov/cclicensing/ccformspubs.

(3) REQUIRED INFORMATION FOR EACH TRIP. The licensee shall ensure that written documentation of all of the following is maintained at the center and in any vehicle transporting children while the children are being transported:

(a) A list of the children being transported.

(b) A copy of the completed permission and emergency information form under sub. (2) for each child being transported.

(c) For transportation to or from a child's home or school, the transportation route and scheduled stops.

(4) DRIVER**.**

(a) The driver of a vehicle used to transport children in care shall be at least 18 years of age and shall hold a valid driver's license for the state where the driver resides and for the type of vehicle driven.

(b) Before a driver who is not the licensee first transports children, the licensee shall provide the driver with a training. The licensee shall review, document, and update the training as necessary with each driver annually. The training shall include all of the following:

1. The procedure for ensuring that all children are properly restrained in the appropriate child safety seat.

2. The procedure for loading, unloading, and tracking of children being transported.

3. The procedure for evacuating the children from a vehicle in an emergency.

4. Behavior management techniques for use with children being transported.

5. A review of this chapter and applicable statutes under s. 347.48, Stats.

6. A review of applicable center policies.

7. First aid procedures.

8. A review of child abuse and neglect laws and center reporting procedures.

9. Information on any special needs a child being transported may have and the plan for how those needs will be met.

10. A review of the use of the vehicle alarm, if applicable.

11. Any other job responsibilities as determined by the licensee.

(c) 1. Prior to the day a driver first transports children in care and annually thereafter, the licensee shall obtain a copy of the driving record for each driver and place the record in the staff file. The licensee shall review each driving record to ensure that the driver has no accidents or traffic violations that would indicate that having children ride with the driver could pose a threat to the children.

2. In determining whether a driver may pose a threat to the children, the licensee shall consider the totality of the driver's record, any other relevant facts, and the following factors in combination:

a. The seriousness of any accidents or violations.

b. How much time has passed since an accident or violation occurred.

c. The number of accidents or violations.

d. The likelihood that a similar incident will occur.

3. A driver whose driving record indicates that the driver poses a threat to the children may not transport children.

Note: Information on how to obtain driving records may be obtained by contacting the Department of Transportation at (608) 261-2566 or https://wisconsindot.gov/Pages/dmv/vehicles/vhcl-rcd-hst/records.aspx

(d) 1. Except as provided in subd. 2., a driver of a vehicle that is transporting children in care may not use a cellular phone or other wireless telecommunication device while loading, unloading, or transporting children, except when the vehicle is out of traffic, not in operation, and any of the following applies:

a. The phone or device is used to call 911.

b. The phone or device is used to communicate with emergency responders.

c. The phone or device is used to communicate with the center regarding an emergency situation.

2. A navigation device may be used during transportation if the device is programmed to a destination when the vehicle is out of traffic and not in operation.

(5) VEHICLE**.**

(a) The licensee shall ensure that each vehicle that is used to transport children is all of the following:

1. Registered with the Wisconsin department of transportation or the appropriate authority in another state.

2. Clean, uncluttered, and free of obstruction on the floors, aisles, and seats.

3. In safe operating condition.

(b) At 12-month intervals the licensee shall provide the department with evidence of a vehicle's safe operating condition on a form provided by the department.

Note: The department's form, *Vehicle Safety Inspection,* is used to record evidence of the vehicle's safe operating condition. Information on how to obtain forms is available on the department's website, https://dcf.wisconsin.gov/cclicensing/ccformspubs.

(c) At least once per year, the licensee shall make available to the department each vehicle that is required to have a child safety alarm under sub. (8) (a) to determine whether the child safety alarm is in good working order.

(d) Hired or contracted school buses used to transport children shall be in compliance with ch. Trans 300.

(6) SEAT BELTS AND CHILD SAFETY RESTRAINTS.

(a) No person may transport a child under 8 years of age in a motor vehicle, unless the child is restrained in a child safety restraint system that is appropriate to the child's age and size and in accordance with s. 347.48 Stats., and ch. Trans 310.

Note: For further information on child safety restraints, see https://wisconsindot.gov/Pages/safety/education/child-safety/default.aspx.

(b) 1. Each child who is not required to be in an individual child car safety seat or booster seat when being transported under par. (a) shall be properly restrained by a seat belt in accordance with s. 347.48, Stats., and ch. Trans 315.

2. Each adult in the vehicle shall be properly restrained by a seat belt in accordance with s. 347.48, Stats., and ch. Trans 315.

3. Seat belts may not be shared.

(c) Children transported in school buses or vehicles built to school bus standards shall be properly seated according to the manufacturer's specifications.

(d) Children under 13 years of age who are in the care of the center may not ride in the front seat of a vehicle.

(7) VEHICLE CAPACITY AND SUPERVISION.

(a) The center shall be responsible for a child from the time the child is placed in a vehicle until the children reaches his or her destination and is released to a person responsible for the child. A parent of a school age child may authorize a child to enter a building unescorted.

Note: The form *Transportation Permission - Child Care Centers* may be used to designate an adult to receive a child being transported. Forms are available on the department's website at https://dcf.wisconsin.gov/cclicensing/ccformspubs.

(b) Children may not be left unattended in a vehicle.

(c) When children are transported in a vehicle, there shall be at least one adult supervisor in addition to the driver whenever there are more than 3 children who are either under 2 years of age or who have a disability that limits their ability to respond to an emergency.

(d) The licensee shall develop and implement a procedure to ensure that all children exit the vehicle after being transported to a destination.

(e) No child may be in a vehicle for transport to or from a center, a field trip, or other center activity for more than 60 minutes for a one-way trip.

(8) CHILD CARE VEHICLE SAFETY ALARM.

(a) A vehicle shall be equipped with a child safety alarm that prompts the driver to inspect the vehicle for children before exiting if all of the following conditions apply:

1. The vehicle is owned or leased by a licensee or a contractor of a licensee.

2. The vehicle has a seating capacity of 6 or more passengers plus the driver. The seating capacity of the vehicle shall be determined by the manufacturer.

3. The vehicle is used to transport children in care.

(b) No person may shut off a child safety alarm unless the driver first inspects the vehicle to ensure that no child is left unattended in the vehicle.

(c) The child safety alarm shall be in good working order each time the vehicle is used for transporting children to or from a center.

Note: Information on the required vehicle safety alarm is available in the "child care licensing/information for providers" section of the department website at http://dcf.wisconsin.gov.

DCF 251.09 Additional requirements for infant and toddler care.

(1) APPLICABILITY AND GENERAL REQUIREMENTS.

(a) Group child care centers providing care and supervision to infants and toddlers shall comply with the additional requirements of this section.

(am) Prior to admission, the licensee shall obtain written information from a child's parent or guardian to individualize the program of care for the child. Child care workers shall use the information obtained from the parents to provide care to the child. Information shall include all of the following:

1. Schedule of meals and feeding.
2. Types of food introduced and timetable for new foods.
3. Toileting and diapering procedures.
4. Sleep and nap schedule.
5. The child's way of communicating and being comforted.
6. Developmental and health history.

Note: The licensee may use the department's form, Intake for Child Under 2 Years — Child Care Centers, or the licensee's own form to record information for individualizing the program of care for each child. Information on how to obtain the department's form is available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

(b) Admission information for an infant or toddler shall be on file in the room or area to which the child is assigned and shall be known to the child care worker.

(c) Child care workers shall document changes in a child's development and routines every 3 months based on discussion with the parent.

(d) Each infant and toddler shall be cared for by a regularly assigned child care worker in a self-contained room or area.

(e) The regularly assigned child care teacher and assistant child care teacher for each group of infants and toddlers shall have a minimum of 10 hours of training in infant and toddler care approved by the department within 6 months after assuming the position. If the training is not part of the required preservice entry-level training under s. DCF 251.05 (3) (f) or (g), it shall be obtained through continuing education.

(f) Infants and toddlers are restricted to first floors and ground floors having direct grade-level exits unless the building is in compliance with all applicable building codes that permit children to be cared for on other levels. The building inspection report on file with the licensing office shall indicate where care may be provided for children under 30 months of age.

(g) Safety gates shall be provided at open stairways.

(h) For centers licensed on or after January 1, 2009, the space occupied by cribs shall be deducted in determining the 35 square feet space requirement under s. DCF 251.06 (7) (a) for each child.

(i) The number of children under one year of age admitted at any one time may not exceed the number of cribs and playpens.

(j) Cribs and playpens shall contain a tight fitting mattress and any mattress covering shall fit snugly over the mattress. Water beds may not be used by children under age 2.

(k) Sheets or blankets used to cover a child one year of age or older shall be kept away from the child's mouth and nose, and if sleeping in a crib or playpen shall be tucked tightly under the mattress.

(L) A child under one year of age may not sleep in a crib or playpen that contains soft or loose materials, such as sheepskins, pillows, blankets, flat sheets, bumper pads, bibs, pacifiers with attached soft objects, or stuffed animals. No blankets and other items may be hung on the sides of the crib or playpen.

(2) DAILY PROGRAM. In addition to the requirements under s. DCF 251.07, all of the following apply to the care of infants and toddlers.

(a) Child care workers shall respond promptly to a crying child's needs.

(b) Each infant and each toddler shall be allowed to form and follow his or her own pattern of sleeping and waking.

(bm) Each child under one year of age shall be placed to sleep on his or her back in a crib unless otherwise specified in writing by the child's physician. The child shall be allowed to assume the position most comfortable to him or her when able to roll over unassisted.

(c) Emphasis in activities shall be given to play as a learning and growth experience.

(d) Throughout the day each infant and each toddler shall receive physical contact and attention such as being held, rocked, talked to, sung to and taken on walks inside and outside the center.

(e) Routines relating to activities such as taking a nap, eating, diapering and toileting shall be used as occasions for language development and other learning experiences.

(f) When a non-mobile child is awake, the child care worker shall change the child's body position and location in the room periodically. Non-mobile children who are awake shall be placed on their stomach occasionally throughout the day.

(g) The non-walking child who can creep or crawl shall be given opportunities during each day to move freely by creeping and crawling in a safe, clean, open, warm and uncluttered area.

(h) Child care workers shall encourage infants and toddlers to play with a wide variety of safe toys and objects.

(j) When infants and toddlers are taken outdoors for a walk, equipment, such as strollers or wagons, shall be provided.

(k) An adult-size rocking chair or other adult-size chair shall be provided for each child care worker.

(3) FEEDING.

(a) Child care workers shall do all of the following:

1. Feed each infant and each toddler on the child's own feeding schedule.

2. Ensure that food, breast milk, and formula brought from home are labeled with the child's name and the date and are refrigerated, if required.

3. Ensure that food, breast milk, and formula offered to infants and toddlers is consistent with the requirements of the U.S. department of agriculture child and adult care food program.

Note: Information on the meal program requirements of the Child and Adult Care Food Program may be found on the following website, http://www.fns.usda.gov/cacfp/meals-and-snacks.

7. Discard leftover milk or formula after each feeding and rinse bottles after use.

8. Offer drinking water to infants and toddlers, as appropriate, several times daily.

9. Hold a child who is unable to hold a bottle whenever a bottle is given. Bottles may not be propped.

10. Cover, date and refrigerate commercial baby food containers which are opened and foods prepared in the center which are stored. If not used within 36 hours, leftover food shall be discarded.

11. Hold or place a child too young to sit in a high chair in an infant seat during feeding. Wide-based high chairs, hook-on chairs or infant seats with safety straps shall be provided for children who are not developmentally able to sit at tables and chairs.

12. Encourage children to experiment with self-feeding with their hands and spoons. Eating utensils and cups shall be scaled to the size and developmental level of the children.

13. Offer a variety of nourishing foods to each child according to the child's developmental level and the parent's feeding instructions.

14. Refrain from feeding a child directly from commercial food containers.

15. Refrain from heating breast milk or formula in a microwave oven.

(b) Procedures for heating infant formula, milk, and food shall be posted, and child care workers shall follow the posted procedures.

(c) Infant bottles and nipples may not be reused without first being cleaned and sanitized.

(4) DIAPERING AND TOILETING.

(a) Child care workers shall do all of the following:

1. Plan toilet training in cooperation with the parent so that a child's toilet routine is consistent between the center and the child's home, except that no routine attempts may be made to toilet train a child under 18 months of age.

2. Change wet or soiled diapers promptly.

3. Change each child on an easily cleanable surface that is cleaned with soap and water and a disinfectant solution after each use. The disinfectant solution shall be registered with the U.S. environmental protection agency as a disinfectant and have instructions for use as a disinfectant on the label. The solution shall be prepared and applied as indicated on the label.

4. If the diapering surface is above floor level, provide a barrier or restraint to prevent falling. A child may not be left unattended on the diapering surface.

5. Place disposable soiled diapers and gloves, if used, in a plastic-lined, hands-free, covered container immediately.

6. Place parent-supplied soiled cloth diapers in labeled plastic bags which are kept separate from other clothing.

7. Place center-supplied soiled cloth diapers in a plastic-lined, covered container for washing by a commercial diaper service.

8. Remove soiled diapers from containers as needed but at least daily for washing or disposal. Containers shall be washed and disinfected daily.

10. Apply lotions, powders or salves to a child during diapering only at the specific written direction of the child's parent or the child's physician. The directions on use shall be posted in the diaper changing area. Recording the use of lotions, powders or salves during diapering in the medical log book is not required.

11. Wash the child's diaper area before each diapering with a disposable or fabric towel used only once.

(b) Each self-contained classroom or area serving infants or toddlers who are diapered shall have a sink with hot and cold running water which is not used for food preparation or dishwashing within the room or area.

(c) There shall be a solid barrier between the diapering area and any food preparation area.

(d) There shall be a supply of diapers sufficient to meet the needs of the children using diapers at the center.

DCF 251.095 Exceptions and additional requirements for care of school-age children.

(1) APPLICABILITY. This section applies to group child care centers that serve only school-age children and group child care centers that serve school-age children in groups separate from children who are under 5 years of age. This section does not apply to group child care centers where school-age children are served in groups with children under 5 years of age.

(2) EXCEPTIONS FOR GROUP CHILD CARE CENTERS SERVING ONLY SCHOOL-AGE CHILDREN. All requirements under ss. DCF 251.04 to 251.08 and 251.11 apply to group child care centers serving school-age children except for the following requirements:

(a) Section DCF 251.06 (2) (b) but only in regard to protection of electrical outlets.

(b) Section DCF 251.06 (8) (d) and (e) relating to shelves and storage space for clothing and personal belongings.

(c) Section DCF 251.06 (11) (b) 7. concerning a permanent enclosure of outdoor space. If hazards exist, such as traffic or bodies of water, the boundaries of outdoor play space shall be made known to the children.

(d) Section DCF 251.05 (1) (g) 2., relating to training for assistant child care teachers.

(e) Section DCF 251.05 (3) (b), relating to supervision of children, does not apply to children 8 years of age and older in the child care center.

(3) EXCEPTIONS FOR GROUP CHILD CARE CENTERS SERVING ONLY SCHOOL-AGE CHILDREN IN SCHOOL BUILDINGS. The following requirements do not apply to group child care centers serving only school-age children in school buildings currently in use as school buildings:

(a) Section DCF 251.05 (1) (g) 2., relating to training for assistant child care teachers.

(b) Section DCF 251.06 (1) (a) on maintaining a building inspection report.

(c) Section DCF 251.06 (4) (a) on fire extinguishers.

(d) Section DCF 251.06 (4) (j) on testing smoke detectors and fire alarms.

(dm) Section DCF 251.06 (5) (c) on the requirement that garbage containers be covered. All other requirements of this section shall be met.

(e) Section DCF 251.06 (6) (b) on testing well water.

Note: The requirements in pars. (b) to (e) do not apply to centers serving only school-age children in school buildings because school buildings are covered in chs. SPS 361 to 365 and NR 109.

(f) Section DCF 251.06 (2) (o) on the requirement that windows and doors used for ventilation be screened.

(g) Section DCF 251.06 (11) (b) 5. on the requirement for an energy absorbing surface on playgrounds to a depth of at least 9 inches.

(4) ADDITIONAL REQUIREMENTS FOR GROUP CHILD CARE CENTERS SERVING SCHOOL-AGE CHILDREN.

(a) *Supervision.*

1. A center serving school-age children is responsible for the health, safety and well-being of a child between the time the child arrives at the center and the time the child is released to the parent or to another activity which is specifically authorized in writing by the parent.

2. The center shall have on file an agreement, signed by the parent, which specifies the attendance schedule to be followed and authorizes the child's release to activities away from the center.

Note: The licensee may use either the department's form, Alternate Arrival/Release Agreement — Child Care Centers, or the licensee's own form for securing the parent's signed agreement. Information on how to obtain the department's form is-available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

3. School-age children 8 years of age and older may be authorized by staff to participate in center-sponsored activities in the child care center away from direct supervision by center staff.

5. School-age children 8 years of age and older may move between groups if a tracking method is implemented to ensure that child care workers know the whereabouts of each child assigned to the worker's care.

(b) *Staff qualifications.*

1. The administrator of a center serving only school-age children shall meet the requirements in s. DCF 251.05 (3) (d) 2. or shall have department-approved experience, credits, or courses in education, physical education, child guidance, social work, coaching, juvenile justice, or recreation, or other department-approved training.

2. A center director or child care teacher of a center serving only school-age children shall meet the requirements of s. DCF 251.05 (3) (e) or (f), as appropriate, or shall substitute for those requirements department-approved experience, credits or approved courses in education, physical education, child guidance, recreation, coaching, social work, juvenile justice, or other department-approved training. The Wisconsin Afterschool and Youth Credential may be used to meet the requirements for a center director or child care teacher.

Note: *Introduction to the School Age Care Profession* and *Skills and Strategies for the School Age Care Teacher* are additional non-credit courses approved by the department to meet this requirement.

3. Each assistant child care teacher shall meet the requirements in s. DCF 251.05 (3) (g) or shall have satisfactorily completed at least 10 hours of training approved by the department in the care of school-age children within 6 months after assuming the position.

(d) Meals and snacks.

1. Children enrolled in school who are attending the center when a meal or snack is served shall be offered the meal or snack.

2. School−age children present after school shall be served a snack.

DCF 251.10 Additional requirements for night care.

(1) APPLICABILITY. Group child care centers that operate during any period of time between 10:00 p.m. and 5:00 a.m. shall comply with the additional requirements of this section.

(2) GENERAL REQUIREMENTS.

(a) A center offering night care may serve no more than 20 children at any one time between 10:00 p.m. and 5:00 a.m. unless the building is equipped with emergency lighting supplied by a stand-by power source.

(b) When the same premises is used for the operation of both day care and night care, the number of children during any overlapping of the day care and night care periods may not exceed the maximum licensed capacity of the center.

(c) Minimum staff-to-child ratios and group sizes as specified in s. DCF 251.055 (2) shall be maintained during night care.

(d) All child care workers on duty shall remain awake, available, within call and able to respond to the needs of the children during night care.

(e) The parent or center shall provide each child in night care with an individually labeled sleeping garment and a toothbrush.

(3) PROGRAM.

(a) Child care staff shall work with a child's parent to coordinate how the child spends his or her time during night care at the center with the family's schedule.

(b) A center offering night care shall provide a self-contained room away from sleeping children where an awake child can engage in activities.

(c) An evening and morning schedule of program activities shall be planned for the hours that children in night care are awake.

(d) School-age children shall have an opportunity to read or do school work.

(4) PREVENTIVE MEASURES.

(a) Child care workers shall be given training in techniques of evacuating sleeping children in an emergency during orientation to the job.

(b) Centers operating during hours of darkness shall provide emergency lighting, such as an operable flashlight, for each self-contained room used by children.

(c) Fire evacuation drills shall be practiced during night care hours at least 2 times per year.

(5) FEEDING.

(a) Breakfast shall be served to all children in care for the night, unless the parent specifies otherwise.

(b) A nighttime snack shall be available to all children in care.

(c) A child present at the time the evening meal is served shall be served the evening meal.

(6) SLEEP.

(a) Children who attend the center for the evening hours but not the whole night shall have an opportunity to sleep, as needed.

(b) Sleep routines for individual children shall be based on information provided by the parents.

(c) A bed, crib or cot with sheets and blankets or a sleeping bag, individual to each child, shall be provided in night care.

(d) The center shall maintain a supply of extra sleeping garments and bedding for emergencies and accidents.

(e) Children under 2 years of age in night care shall sleep in cribs.

DCF 251.11 Licensing administration.

(1) GENERAL CONDITIONS FOR APPROVAL OF LICENSE.

(a) A facility that provides care on a regular basis to 9 or more children under the age of 7 years shall be deemed to be providing care for compensation and shall be licensed as a group child care center.

(b) Prior to receiving a license, an applicant for a license under this chapter shall complete all application forms truthfully and accurately and pay all fees and forfeitures due to the department.

(c) The department may refuse to issue or continue a license if another center operated by the licensee is in substantial non-compliance with the licensing rules or has any outstanding fine or forfeitures.

(d) Persons licensed to operate a group child care center shall be responsible, mature individuals who are fit and qualified. In determining whether an applicant is fit and qualified, the department shall consider any history of civil or criminal violations or other offenses substantially related to the care of children by the applicant, owner, manager, representative, employee, center resident or other individual directly or indirectly participating in the operation of the group child care center. A determination of being unfit and unqualified includes substantiated findings of child abuse or neglect under ch. 48, Stats., or substantiated abuse under ch. 50, Stats., or under similar statutes in another state or territory whether or not it results in a criminal charge or conviction.

(e) The department shall issue a group child care license to an applicant within 60 working days after receipt and department approval of a properly completed application, satisfactory department investigation and determination that the applicant is fit and qualified. Continued licensure requires a licensee to remain fit and qualified.

(f) If the department has reason to believe that the physical or mental health of any person associated with the care of children at the center or any household resident of the center might endanger children in care, the department may require that a written statement be submitted by a physician or, if appropriate, by a licensed mental health professional that shall certify the condition of the individual and the possible effect of that condition on the group child care center or the children in care.

(g) The department may deny or revoke the license if the examination specified under par. (f) gives the department reasonable concern for the care of children.

(h) The department may not process an application for a license if the applicant has had a license or certification to operate a child care center revoked or denied within the last 2 years. An applicant is deemed ineligible to submit an application for a license and a licensee may not hire an employee within 2 years from the date an applicant or employee had a child care license revoked or denied.

(i) The department shall consider a licensee who fails to submit any of the materials described in sub. (3) or (4) by the expiration or continuation date of a license to have surrendered his or her license and to no longer hold title to the license. The former licensee may not continue to operate the child care center.

(2) INITIAL APPLICATION FOR A PROBATIONARY LICENSE.

(a) An applicant for a license shall participate in pre-licensing technical assistance towards the completion of the initial licensing study checklist with a representative of the department prior to submitting an application for a license.

Note: 1. Information on how to obtain pre-licensing technical assistance is available from the appropriate Division of Early Care and Education regional office in Appendix A. The department will provide the application form to a license applicant upon completion of the pre-licensing technical assistance.

2. An initial licensing study checklist includes a list of those licensing rules that must be met before a license can be issued. A copy of the checklist is available from a representative of the department or from the appropriate regional office in Appendix A.

(b) An applicant for a license shall submit an application at least 60 days before the date proposed for the center to begin operating.

(c) An applicant for an initial license shall include all the following with the application form:

1. The license fee required under s. 48.65 (3) (a), Stats.

2. A completed background check request form provided by the department for the applicant. If the center is or will be located in a residence, a completed background check request form shall be submitted for any household member 10 years of age and above.

3. A statement from a representative of the department that details the results of any pre-licensing technical assistance.

4. A statement from the applicant that indicates the center is in compliance with all applicable items in this chapter.

5. A copy of all the policies required under s. DCF 251.04 (2) (h) and a completed copy of the group child care policy checklist provided by the department.

Note: Information on how to obtain a copy of the Group Child Care Policy Checklist is available on the department's website, http://dcf.wisconsin.gov, or from any regional licensing office in Appendix A.

5g. The articles of incorporation and by-laws if the licensee is organized as a corporation, association or cooperative. If the licensee is a limited liability company, articles of organization and the operating agreement, if applicable, shall be submitted.

5r. A written delegation of administrative authority signed by the licensee. The delegation of administrative authority shall describe the organizational structure of the center and identify by position or name, those persons on the premises who are in charge of the center for all hours of operation.

6. Any other materials determined by the department as necessary to complete the department's licensing investigation.

(d) Upon submission of a complete application, the department shall conduct an investigation to determine whether the applicant is eligible for a license.

(e) If the department determines that the applicant is eligible for a license, the department shall issue a probationary license having a 6-month duration. A probationary license may be renewed for one 6-month period.

(f) If the department determines that an application does not comply with the applicable requirements of this chapter or the department's investigation determines that the applicant is not eligible for a license, the department may deny the application.

(3) OBTAINING A REGULAR LICENSE.

(a) At least 30 days before the expiration date of a probationary license, an applicant for license renewal shall submit to the department the following materials:

1. A completed license application.

3. The license renewal fee under s. 48.65 (3) (a), Stats., applicable fees for child care background checks, and any unpaid forfeiture under s. 48.715 (3) or 49.155 (7m) (a) 3., Stats., and any penalty under s. 48.76, Stats.

4. Any changes to center policies, if not previously submitted.

5. Any changes to the delegation of administrative authority if not previously submitted.

6. Any other materials determined by the department as necessary to complete the department's licensing investigation.

(b) If the department determines that the applicant has met the minimum requirements for a license under this chapter, and if the applicant has paid the applicable fees under ss. 48.65 and 48.686, Stats., any unpaid forfeiture under s. 48.715 (3) (a) or 49.155 (7m) (a) 3., Stats., and any unpaid penalty under s. 48.76, Stats., the department shall issue a regular license.

(4) CONTINUING A REGULAR LICENSE.

(a) A regular license shall be valid indefinitely, unless suspended or revoked by the department or surrendered by the licensee. The department shall review a regular license every 2 years after the date of issuance.

(b) At least 30 days before the continuation review date of the license, an applicant for license renewal shall submit to the department the following materials:

1. A completed license continuation application.

3. The license renewal fee under s. 48.65 (3) (a), Stats., applicable fees for child care background checks under s. 48.686, Stats., and unpaid forfeiture under s. 48.715 (3) or 49.155 (7m) (a) 3., Stats., and any unpaid penalty under s. 48.76, Stats.

4. Any changes to center policies, if not previously submitted.

5. Any changes to the delegation of administrative authority if not previously submitted.

6. Any other materials determined by the department as necessary to complete the department's licensing investigation.

Note: The department will supply a copy of the form, License Application — Group Child Care Centers, prior to the continuation date of the license.

(c) If the department determines that the licensee has met the minimum requirements for a license under this chapter., has paid the applicable fees under ss. 48.65 and 48.66, Stats., any unpaid forfeiture under s. 48.715(3)(a) or 49.155(7m)(a)3., Stats., and any unpaid penalty under s. 48.76, Stats., the department shall continue the license for an additional 2 years.

(5) AMENDING A LICENSE.

(a) A licensee shall submit to the department a written request for an amendment to the license if the licensee wishes to change any of the following aspects of the license:

1. A change in the licensed capacity of the center.
2. The age range of the children.
3. The hours of the center's operation.
4. The days of the week the center is in operation.
5. The months of the year the center is in operation.
6. The name of the center.

(b) A licensee may not make a change that affects a condition of the license under par. (a) without the prior written approval of the department.

(c) A licensee may not move the center to a new location or change ownership of the center without notifying the department at least 30 days prior to the change. A new application and license is required when a center moves or changes ownership.

Note: The department's form, License Application — Group Child Care Centers, is used to apply for a new license. The department will provide an application when notified by the licensee that the center will move to a new location.

(d) A licensee proposing to increase the licensed capacity of a center shall demonstrate compliance with this chapter in the operation of the existing center and compliance with rules for any other facility licensed by the department and operated by the licensee.

(6) ADDITIONAL LICENSE. A licensee applying for a license for an additional center location shall demonstrate compliance with this chapter in the operation of the existing center he or she operates and compliance with rules for any other facility licensed by the department and operated by the licensee. The licensee shall pay any fines, forfeitures or other fees due and owing under s. 48.715, Stats., or s. 48.65, Stats., on other facilities licensed by the department before the department issues an additional license.

(7) LICENSE DENIAL OR REVOCATION.

(a) The department may deny, revoke or suspend a license, initiate other enforcement actions specified in this chapter or in ch. 48, Stats., or place conditions on a license if the applicant or licensee, a proposed or current employee, a volunteer or any other person having regular contact with the children, has or has been any of the following:

1. The subject of a pending criminal charge for an action that substantially relates to the care of children or activities of the center.
2. Convicted of a felony, misdemeanor or other offense or action that substantially relates to the care of children or activities of the center.
3. Determined to have abused or neglected a child pursuant to s. 48.981, Stats., or has been determined to have committed an offense which substantially relates to the care of children or the activities of the center.
4. The subject of a substantiated finding of misconduct in the department's nurse aide registry under s. DHS 129.10.
5. The subject of a court finding that the person has abandoned his or her child, has inflicted sexual or physical abuse on a child or has neglected or refused, for reasons other than poverty, to provide necessary care, food, clothing, medical or dental care or shelter for his or her child or ward or a child in his or her care so as to seriously endanger the physical health of the child.
6. Had a child care license or certification revoked or denied within the last 5 years.
7. Violated any provision of this chapter or ch. 48, Stats., or fails to meet the minimum requirements of this chapter.
8. Made false statements or withheld information.

Note: Examples of charges and offenses the department will consider in making a determination under this paragraph that an act substantially relates to the care of children are: abuse or neglect of a child; sexual assault; abuse of a resident of a facility; a crime against life and bodily security; kidnapping; abduction; arson of a building or of property other than a building; robbery; receiving stolen property from a child; a crime against sexual morality, such as enticing a minor for immoral purposes or exposing a minor to harmful materials; and interfering with the custody of a child. The list is illustrative. Other types of offenses may be considered.

(b) The department may deny, revoke, refuse to renew or suspend a license, initiate other enforcement actions specified in this chapter or in ch. 48, Stats., or place conditions on the license if the applicant or licensee is not fit and qualified as determined under sub. (1).

Note: See DCF 251.03 (11g) for the definition of "fit and qualified." Examples of charges, actions or offenses the department will consider in making a determination under this paragraph that an act substantially relates to the care of children include the following: abuse or neglect of a child; sexual assault; abuse of a resident of a facility; a crime against life and bodily security; kidnapping; abduction; arson of a building or of property other than a building; robbery; receiving stolen property from a child; a crime against sexual morality, such as enticing a minor for immoral purposes or exposing a minor to harmful materials, interfering with the custody of a child. The list is illustrative. Other types of offenses may be considered.

(c) The department shall deny or refuse to continue or revoke a license if the applicant or licensee has failed to pay court-ordered payments of child or family support, maintenance, birth expenses, medical expenses or other expenses related to the support of a child or former spouse or for the failure of the applicant or licensee to comply, after appropriate notices, with a subpoena or warrant issued by the department or a county child support agency under s. 59.53 (5), Stats., and related to paternity or child support proceedings, as provided in a memorandum of understanding entered into under s. 49.857, Stats. Notwithstanding s. 48.72, Stats., an action taken under this subsection is subject to review only as provided in the memorandum of understanding entered into under s. 49.857, Stats., and not as provided in s. 48.72, Stats.

(d) The department shall deny an application for the issuance or continuation of a license or revoke a license if the department of revenue certifies under s. 73.0301, Stats., that the applicant or licensee is liable for delinquent taxes. An action taken under this subsection is subject to review only as provided under s. 73.0301(5), Stats., and not as provided in s. 48.72, Stats.

(8) EFFECT OF NOTICE TO DENY OR REVOKE A LICENSE.

(a)1. If the department decides under sub. (7) to deny the grant of a license or to revoke a license, the department shall notify the applicant or licensee in writing of its decision and the reasons for that decision.

2. If the department revokes a license, the effective date of the revocation shall be either immediately or 30 days after the date of the notice, based on the criteria under s. 48.715 (4m) (a) and (b), Stats., unless the decision is appealed under sub. (10).

(b) Upon receipt of the notice in par. (a) and during any revocation or denial procedures that may result, a group child care center may not accept for care any child not enrolled and in care as of the date of receipt of the notice without the written approval of the department.

(9) SUMMARY SUSPENSION OF A LICENSE.

(a) Under the authority of s. 227.51 (3), Stats., the department shall summarily suspend a license and close a group child care center when the department finds that the public health, safety or welfare requires emergency action and incorporates a finding to that effect into its order. A finding of a requirement for summary suspension of the license may be based on any of the following:

1. Failure of the licensee to provide environmental protections for the children, such as heat, water, electricity or telephone service.

2. The licensee, an employee, a volunteer or any other person in regular contact with the children in care has been convicted of or has a pending charge for a crime against life or bodily security.

3. The licensee, an employee, a volunteer or any other person in regular contact with the children in care has been convicted of a felony, misdemeanor or other offense that substantially relates to the care of children or activities of the center or has a pending charge that substantially relates to the care of children or activities of the center.

4. The licensee, employee, volunteer or any other person in regular contact with the children in care is the subject of a current investigation for alleged child abuse or neglect pursuant to s. 48.981, Stats., or has been determined by a child protective services agency or law enforcement agency to have abused or neglected a child.

5. The licensee or a person under the supervision of the license has committed an action or has created a condition relating to the operation or maintenance of the child care center that directly threatens the health, safety or welfare of any child under the care of the licensee.

(b) An order summarily suspending a license and closing a group child care center may be a verbal order by a licensing representative of the department. Within 72 hours after the order takes effect, the department shall either permit the reopening of the center or proceed under sub. (7) or (8) to revoke the license. A preliminary hearing shall be conducted by the department of administration's division of hearings and appeals, within 10 working days after the date of the initial order to close, on the issue of whether the license shall remain suspended during revocation proceedings.

(10) APPEAL OF DECISION TO DENY OR REVOKE A LICENSE. Any person aggrieved by the department's decision to deny a probationary or regular license or to revoke a license may request a hearing on that decision under s. 227.42, Stats. The request for a hearing shall be in writing and submitted to the department of administration's division of hearings and appeals. The request for a hearing shall be sent to the division of hearings and appeals within 10 days after the date of the notice under sub. (8). A request for a hearing is considered filed upon its receipt by the division of hearings and appeals. A request for a hearing transmitted by facsimile to the division of hearings and appeals shall be considered filed on the date and time imprinted by the division's facsimile machine on the transaction report that accompanies the document. Documents received by facsimile after midnight local time shall be deemed filed on the first following business day.

Note: A request for a hearing may be mailed to Division of Hearings and Appeals, P.O. Box 7875, Madison, WI 53707−7875 or faxed to (608) 264−9885. A copy of the request should be sent to the appropriate regional licensing office listed in Appendix A.

DCF 251.12 Complaints, inspections and enforcement actions.

(1) COMPLAINTS.

(a) Anyone having a complaint about a licensed or illegally operating group child care center may submit that complaint to the department by telephone, letter or personal interview. A representative of the department shall investigate every complaint. If requested by the complainant, the department shall provide the complainant a written report of the investigation findings.

Note: A complaint should be sent, phoned or delivered to the appropriate Division of Children and Family Services regional office listed in Appendix A.

(b) The licensee may not discharge an employee because that employee has reported violations of this chapter to the representative of the department.

(2) INSPECTION. Pursuant to s. 48.73, Stats., the department may visit and inspect any group child care center at any time during licensed hours. A department licensing representative shall have unrestricted access to the premises identified in the license, including access to children in care, staff and child records, and any other materials or individuals with information on the group child care center's compliance with this chapter.

(3) ENFORCEMENT ACTION. The department may order any sanction or impose any penalty on a licensee in accordance with s. 48.685, 48.715 or 48.76, Stats.

DCF 251.13 Programs established or contracted for by school boards.

(1) A child care program established or contracted for by a school board under s. 120.13 (14), Stats., shall comply with the applicable standards for group child care centers under this chapter.

(2) The department shall annually inspect each child care program established or contracted for by a school board under s. 120.13 (14), Stats., that receives payment under s. 49.155, Stats., for the child care provided, and document in writing whether or not the child care program complies with this chapter.

APPENDIX A
REGIONAL OFFICES OF THE DIVISION OF EARLY CARE AND EDUCATION

The Department of Children and Families licenses child care centers through five Division of Early Care and Education regional offices. Below are addresses and phone numbers of the regional offices and the counties and tribes within each region.

REGIONS	COUNTIES AND TRIBES
Northeastern Regional Office 200 North Jefferson, Suite 411 Green Bay, WI 54301 Gen: (920) 785-7811 Fax: (920) 785-7869	Counties: Brown, Calumet, Door, Fond du Lac, Green Lake, Kewaunee, Manitowoc, Marinette, Marquette, Menominee, Oconto, Outagamie, Ozaukee, Shawano, Sheboygan, Washington, Waupaca, Waushara, Winnebago Tribes: Menominee, Oneida, Stockbridge-Munsee, Ho-Chunk
Northern Regional Office 2187 North Stevens Street, Suite C Rhinelander, WI 54501 Gen: (715) 361-7700 Fax: (715) 365-2517	Counties: Ashland, Bayfield, Florence, Forest, Iron, Langlade, Lincoln, Marathon, Oneida, Portage, Price, Sawyer, Taylor, Vilas, Wood Tribes: Bad River, Lac Courte Oreille, Lac du Flambeau, Red Cliff, Sokaogon, Forest County Potawatomi, Ho-Chunk
Southeastern Regional Office 141 NW Barstow, Room 104 Waukesha, WI 53188-3789 Gen: (262) 446-7800 Fax: (262) 446-7991	Counties: Kenosha, Milwaukee, Racine, Waukesha
Southern Regional Office 2135 Rimrock Road P.O. Box 8947 Madison, WI 53708-8947 Gen: (608) 422-6765 Fax: (608) 422-6766	Counties: Adams, Columbia, Crawford, Dane, Dodge, Grant, Green, Iowa, Jefferson, Juneau, Lafayette, Richland, Rock, Sauk, Walworth Tribes: Ho-Chunk
Western Regional Office 610 Gibson Street, Suite 2 Eau Claire, WI 54701-3696 Gen: (715) 930-1148 Fax: (715) 930-1139	Counties: Barron, Buffalo, Burnett, Chippewa, Clark, Douglas, Dunn, Eau Claire, Jackson, LaCrosse, Monroe, Pepin, Pierce, Polk, Rusk, St. Croix, Trempealeau, Vernon, Washburn Tribes: Ho-Chunk

INDEX

A

Accident
- Reporting 6

Activities 28
Additional Center 46
Address Change 46
Administration 5
Administrator
- Report change 7
- School-age care 42

Admission
- Infant and toddler 38
- Mildly ill child 31

Admission Policy 5
Adventure-based Activities 34
Age of Children 5, 46
Allergies 31
Amendments to License 46
Animals 34
Application
- Initial license 44
- **LICENSE CONTINUATION** 45

Archery 34
Assistant Child Care Teacher
- Infants and toddlers 38
- School-age care 42

Attendance 9
Authority 45

B

Baby Food 39
Background Check Request form 2, 6, 44
Bandaid 33
Basement
- Door 22
- Food storage 24

Bed
- Isolation area 31
- Night care 43
- Rest periods 30
- Water beds 38

Bedding
- Isolation area 31
- Maintenance, cleanliness 30
- Night care 43
- Storage 23

Bottles 39
Breakfast 43
Building
- Construction, remodeling 7
- Infant and toddler care 38
- Night care 43
- Requirements 21
- School-age care 41

C

Capacity
- Amending a license 46
- Night care 43
- Terms of license 5

Center Director
- Report change 7
- School-age care 42

Certificate
- Insurance 5
- Rabies vaccination 34

Chairs 39
Change
- Administrator 7
- Background check designee 6
- Board president or chairperson 6
- Center director 7
- Household member 6
- Meal preparation 7
- Menu 31
- Off-premises play space plan 27
- Program service 7
- Remodeling 21
- Room usage 7, 21
- Transportation services 7

Child Abuse and Neglect
- Reporting 10
- Training 10

Child Care Background Check
- Form 2
- Initial license application 44
- Reporting convictions, charges, offenses 7
- Staff records 11
- Submit to the department 6

Child Care Teachers
- School-age care 42

Child Guidance 28
Child Guidance Policy 6, 28
Children's Records 8
Cleanliness 30, 33
Clothing
- Available supply 33, 40, 43
- Wet or soiled 39

Combs 33
Communicable Disease 7, 32
Communication
- Infants and toddlers 38
- Parents 8
- Program 28

Complaints 49
Confidentiality 9
Construction 7, 21
Continuing Education
- Child abuse and neglect 10
- Infants and toddlers 38

Continuing Education Policy 6

Cots
Isolation area 31
Night care 43
Rest periods 30
Storage 23
Creativity
Equipment 29
Program 28
Cribs
Isolation area 31
Mattress, covering 38
Night care 43
Rest periods 30

D

Days of Operation 5, 46
Death Reporting 6
Denial 46
Developmental History 38
Diapering
Infants and toddlers 39
Personal cleanliness 33
Timeliness 33
Diets 31
Discharge Policy 5
Discipline *See* Child Guidance
Discrimination 5
Dishwashing 23
Disinfecting
Diaper pail 40
Diapering surface 39
Hand sanitizers 33
Wading pools 27
Disposable Cups 23
Drinking Water 23, 39

E

Early Learning Standards 28
Education Policy 5, 8
Emergency
Lighting 43
Parental consent 8
Parental notification 33
Planned source of care 33
Policies, plans 22
Telephone numbers 21
Vehicle availability 21
Emergency Plan Policy 6
Exception to Rule 1
Exit Lights 22

F

Fee Payment and Refund Policy 5
Feeding
Infants and toddlers 38, 39
Night care 43
Field Trip
Authorization 8
Handwashing 33
Notification 8
Fire Evacuation 22, 43
Fire Protection 22
Firearms 21
First Aid
Injuries 33
Flashlight 43
Food
Allergy 31
Handling 24
Infants and toddlers 39
Meals and snacks 30
Night care 43
Preparation area 23, 34, 40
Sources 24
Storage 24, 34
Food Allergies 6
Formula 39
Frozen Foods 25
Furnace Room Door 22

G

General Liability Insurance 5
Grouping
Infants and toddlers 38
Night care 43
School-age care 41
Swimming 27
Guns 21

H

Handwashing
Field trips 33
Food service personnel 25
Personal cleanliness 33
Harmful Materials 21
Hazards
Food storage 24
Indoor and outdoor premises 21
Off-premises outdoor play space 27
Outdoor play space 26
Health Care
Requirements 31
Health Care Policy 5, 31
Health History and Emergency Care Plan 9
High Chair 39
Horseback Riding 34
Hot Tub 22
Hours of Operation 5, 46

I

Ill Child Procedure 31
Immunization 9
Individual Attention 28
Individualized Program 38
Indoor Play
Equipment 29
Indoor Space 23
Infants and Toddlers
Nitrates 23
Requirements for care 38

Injury
Observation 31
Procedures 33
Reporting to department 6
Reporting to parents 8
Insecticide 21
Inspection
Building 21, 38
Fire extinguishers 22
Licensing 6, 49
Insurance
General and vehicle liability 5
Pets 34
Intellectual Growth 28
Isolation 31

J

Job Description 5

K

Kitchens 23

L

Large Muscle Development
Equipment 29
Program 28
Laws 5
Leftovers 24, 39
Liability Insurance 5
License
Amending 46
CONTINUATION APPLICATION 45
Denial or revocation 46
Initial application 44
Posting requirements 6
Summary suspension 47
Terms 5
Licensed Capacity 5, 46
Literacy 28

M

Manipulative Skills Equipment 29
Meal Preparation Personnel
Responsibilities and qualifications 25
Meals and Snacks
Infants and toddlers 39
Night care 43
Requirements 30
Medication
Requirements 32
Menu 30
Mildly Ill Child 31
Milk
Standards 24
Mixed-Age Group 27
Months of Operation 5, 46

N

Napping
Requirements 30
Night Care 43
Non-Mobile Child 39
Non-Owned Vehicle Liability Insurance 5
Nutrition Policy 6

O

Orientation
Evacuating sleeping children 43
Orientation Policy 6
Outdoor Play
Activities 28
Space requirements 26
Ownership of Center 46

P

Paper Towel 25
Parent
Access to center 8
Access to child records 10
Notifications 7, 31, 33, 34
Opportunity for communication 8, 38
Parental Consent
Alternate arrival / release 9, 41
Care of mildly ill child 31
Field trip 8
Lotions, powders, salves 40
Medical care 8, 33
Medication administration 32
Release of confidential information 9
Research or testing 9
Personal Cleanliness 33
Personnel Policy 5
Pets 34
Physical Restraint 29
Plan of Correction 7
Playpen
Quantity 38
Rest periods 30
Poison 21, 33, 34
Policies
Available to parents 8
Development 5
Reflective of program 28
Pools 27
Potty Chair
Quantity 25
Power Tools 21
Protective Measures 21
Publicity 6, 8

Q

Qualifications
Food service personnel 25
School-age care 42

R

Recording
- Application of lotions, powders, etc. 40
- Attendance 9

Records
- Access 10, 49
- Children 8
- Confidentiality 9
- Fire alarms, smoke detectors 22
- Fire and tornado drills 22
- Menus 31

Refrigerator 23, 24
Religious Training 8
Remodeling 7, 21
Reports
- To county department 10
- To department 6, 27, 46
- To parents 7

Research or Testing Project 9
Rest Periods 30
Revocation 46
Riflery 34
Routines
- Documenting changes 38
- Infants and toddlers 39
- Night care 43
- Programming 28
- Toilet training 39

S

Safety Gates 38
Safety Measures
- Drinking water 23
- Emergency lighting 43
- Energy-absorbing surface 26, 29
- Exit lights 22
- Fire protection 22
- Food handling 24
- Food storage 24
- Stairs, walks, ramps, porches 21
- Telephone 21
- Vehicle availability 21
- Written response plans 22

Sanitation
- Bedding 30
- Dishwashing 23
- Food contact surfaces 23
- Hand sanitizers 33
- Kitchen equipment and utensils 23
- Personal care items 33

Schedule
- Infants and toddlers 38
- Night care 43
- Program 28
- School-age care 41

School-Age Care 41
Screens
- Hot surface 21
- Isolation area 31

Self-Contained Room
- Infants and toddlers 38
- Mildly ill care 31
- Night care 43

Sidewalks 21
Single Use Towels 25
Single-Service Utensils 23
Sinks
- Diapering 40
- Meal preparation 23
- Mildly ill care 31

Sleep Position 38
Sleeping
- Evacuating children 43
- Night care 43
- Rest periods 30

Sleeping Bag
- Isolation area 31
- Night care 43
- Rest periods 30

Sleeping Garment 43
Small Muscle Development
- Equipment 29
- Program 28

Smoke Detectors 22
Smoking 21
Snacks
- Equipment and utensils 23
- Night care 43
- Requirements 30

Snow Removal 21
Soap 25, 33
Social Interaction
- Equipment 29
- Mealtimes 31
- Program 28

Space
- Change in use 21
- Deduction for cribs 38
- Exclusive use 21
- Indoor requirements 23
- Outdoor requirements 26

Stairs
- Maintenance 21
- Safety gates 38
- Storage 22

Storage
- Cots, bedding, supplies, equipment 23
- Food 24
- Requirements 22

Summary Suspension 47
Supervision
- Pets or animals 34
- School-age care 41
- Swimming 27

Swimming Areas 27

T

Telephone 21
Television 28
Temperature
  Dishwashing 23
  Food handling 25
  Food storage 24
  Inside 21
  Outdoor - inclement weather 28
Terms of License 5
Testing
  Fire alarms and smoke detectors 22
  Water 23
  Written consent 9
Thermometer
  Cold storage 24
  Dishwashers 24
Time Out 29
Toilet
  Facilities 25
Toilet Training 39
Toothbrush 33, 43
Tornado Drill 22
Toys
  Equipment 29
  Program - infants and toddlers 39
Transportation
  Center-provided 35
  Change in service 7
Transportation Policy 6

U

Urinals 25
Utensils
  Infants and toddlers 39
  Kitchen 23
  Single-service 23

V

Vehicle
  Availability 21
  Food delivery 25
  Insurance 5
Vehicle Liability Insurance 5
Visits
  Department 49
  Parents 8

W

Wading Pool 27
Washbasins 25
Wastepaper Container 25
Water 23
Watercraft 34
Well 23

Z

Zoning 21